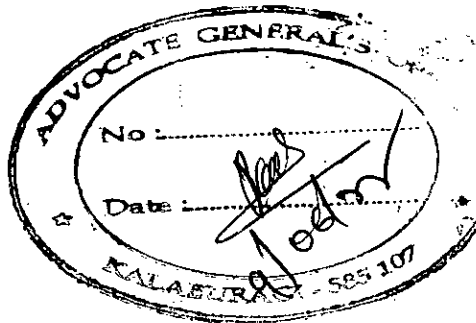


IN THE HIGH COURT OF KARNATAKA AT KALABURGI		
W. P.	No:	201946 2025
Dist- Vijayapur		

Advocates Sri	Between
Sri. P.G.Yatnal and Associates, No.200/A, 10 th Main, 55 th Cross, Rajajinagar, (Opp- Ram Mandir Door), Bengaluru-560010. Mob.No.9972423442 Pyatanl@gmail.com	Krishna Bhagya JalaNigama Ltd. ...Petitioner
	And
	The Special Land Acquisition Officer and ors ...Respondents

PRESENTATION FORM

Sl.No.	Description of Papers Presented	Court Fee paid
1.	On memorandum of W. P.	
2.	On the memo of appearance	
3.	On	
4.	On Certified Copies	
		Total 100/-
Number of Copies furnished		Other side Served
Presented by		
P.G. Yatnal		
Advocate for petitioners		Received papers with
Court-fee label as above		Advocate's clerk
Date :09-06-2025		



IN THE HIGH COURT OF KARNATAKA AT KALABURGI

WRIT PETITION NO. /2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and ors

...Respondents

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1.	Synopsis	01-02
2.	Memorandum of Writ Petition	03-20
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7.	Annexure-B-1: copy of impugned judgment and order dated 26/03/2019 pertaining to respondent No.21 to 14	67-106
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13.	Annexure-B-7: copy of impugned judgment and order dated 10/01 2019 pertaining to respondent No. 19	306-342
14.	Annexure-C-1: copy of order of stay dated 18/12/2024 in W.P. No. 203801/2024	343
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Kalaburgi
Date: 09-06-2025

Advocate for Petitioner
(P. G. Yatnal)

IN THE HIGH COURT OF KARNATAKA AT KALABURGI

WRIT PETITION No. /2025.BETWEEN;

Krishna BhagyaJalaNigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and ors.

... Respondents

SYNOPSIS

Sl. No.	DATE	EVENTS
1	21/02/2018	Since, the schedule properties owned by the claimant was acquired for UKP, Alamatti. The 1 st respondent fixed the market value of land and other statutory benefits and the petitioner is a beneficiary of the land acquired.
2.	2018	The respondents No. 02 to 32 filed claim petitions before the Hon'ble court below for enhancement of compensation.
3.	26/03/2019	The reference applications of the respondent No.02 to 27 were allowed by the Hon'ble court below without notice to the petitioner by fixing the compensation at exorbitant rate.
4	10/04/2019	The reference applications of the respondent No.28 to 32 were allowed by the Hon'ble

		court below without notice to the petitioner by fixing the compensation at exorbitant rate. Hence, the petitioner aggrieved.
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BRIEF FACTS OF THE CASE:

The petitioner is highly aggrieved by judgment and orders vide Annexure-B to B-07, having no other alternative and efficacious remedy available than approaching this Hon'ble Court under Article 226 and 227 of the Constitution of India, is before this Hon'ble Court through this writ petition.

Kalaburgi

09-06-2025

ADVOCATE FOR PETITIONER

(P. G. YATNAL)

IN THE HIGH COURT OF KARNATAKA AT KALABURGI
(SUPERVISORY JURISDICTION)

WRIT PETITION NO. /2025

BETWEEN:

Krishna BhagyaJalaNigama Ltd.,
Upper Krishna Project, Almatti,
Tq: Nidagundi, Vijayapur Dist.-586201
Rep. By its Managing Director

...Petitioner

V/S

1. The Special Land Acquisition Officer,
UKP, Alamatti-586201
2. Danamma W/o Mallappa Magi @ Doddamani,
Age: 69 years, Occ; Agriculture
3. Meenakshi W/o Ravikant Doddamani,
Age: 53 years, Occ; Agriculture
4. Shivakant S/o Ravikant Doddamani,
Age: 27 years, Occ; Agriculture
5. Vijayalakshmi D/o Ravikant Doddamani,
Age: 25 years, Occ; Agriculture
6. Jayashree W/o Rachagond Gudekar,
Age: 61 years, Occ; Agriculture
7. Padmashree W/o Ravi Maniknavar,
Age: 53 years, Occ; Agriculture
8. Chandrakant @ Chandrashekhar
S/o Mallappa Doddamani,
Age: 51 years, Occ; Agriculture
9. Mahadevappa S/o Mallappa Doddamani,

- Age: 48 years, Occ; Agriculture,
10. Rajashree W/o Dundappa @Dondappa Gadekar,
Age: 61 years, Occ; Agriculture,
11. Gurubai W/o Basappa @ Basavaraj
Doddamani @ Doddamani
Age: 66 years, Occ: Household Work.
12. Sangappa S/o Basappa Doddamani @ Doddamani
Age: 37 years, Occ: Agriculture
13. Roopa W/o Laxman Totakar
Age : 35 Years, Occ: Household Work
14. Ningappa S/o Basappa Doddamani @ Doddamani,
Age: 33 years Occ: Agriculture
15. Nagamma W/o Yamanappa Doddamani @ Doddamani
Age: 71 Years, Occ: Agriculture/Household Work.
16. Subhash S/o Yamanappa Doddamani @ Doddamani
Age: 58 Years, Occ: Agriculture
17. Ramesh S/o Yamanappa Doddamani @ Doddamani
Age : 56 Years, Occ: Agriculture
18. Shrishail S/o Yamanappa Doddamani @ Doddamani,
Age: 52 years Occ: Agriculture
19. Surekha D/o Yamanappa Doddamani, @ Doddamani,
Age: 49 years, Occ: Household work.
20. Prakash S/o Yamanappa Doddamani, @ Doddamani
Age: 48 years Occ: Agriculture
21. Umesh S/o Yamanappa Doddamani, @ Doddamani
Age: 46 years, Occ: Agriculture
22. Shrishail S/o Yamanappa Doddamani @ Doddamani,
Age: 39 years Occ: Agriculture

23. Gangadhar S/o Vidyahar Heralagi @ Doddamani,

Age: 47 years Occ: Agriculture

24. Poornima @ Girijavva W/o Rajashekhar, Heralagi

Age: 46 years Occ: Agriculture/House hold work.

25. Prerana D/o Rajashekhar Heralagi,

Age: 22 years, Occ: Student

26. Naveen S/o Rajashekhar, Heralagi

Age: 21 years, Occ: Student

Respondent No. 02 to 26 are

R/o Basava Nager , Bagalkot Road Vijayapur.;586102

27. Babu S/o Shivamma Yamme @ Shiranagar

and S/o Shekhappa Shiranagar

Age: 55 years Occ: Agriculture

28. Shiddappa S/o Gurusiddappa Pujari

Age: 81. years Occ: Agriculture,

Respondents No. 27 and 28

R/o Ward No.29 Basava Nager,

Bagalkot Road Vijayapur-586102

29. Baburav @ babu S/o Shivagondappa @ Shivappa Pujari

Age: 54 years Occ: Agriculture

30. Apparay @ Appu S/o Shivagondappa @ Shivappa Pujari

Age: 51 years Occ: Agriculture,

31. Annappa S/o Shivagondappa @ Shivappa Pujari

Age:50 years Occ: Agriculture,

32. Yashavanth S/o Shivagondappa @ Shivappa Pujari

Age:46 years Occ: Agriculture,

Respondents No. 29 and 32 are

R/o Kasageri Glli, Dist: Vijayapur-586101

...Respondents

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 AND
227 OF THE CONSTITUTION OF INDIA.

The Petitioner states as follows:

BRIEF FACTS OF THE CASE:

1. That the petitioner /Nigam is a company owned by the Government of Karnataka for implementation of the Upper Krishna Project,(hereinafter called as UKP) which has responsibility of execution of all irrigation projects, rehabilitation and resettlement of the people affected by the project. The petitioner, being a company, has its own assets and liability.
2. That land required for the petitioner to implementation various projects and in this regard, the respondent No.01 is appointed to acquire land. However, it is the petitioner, who is liable to pay the compensation to the land owners as per the amount fixed by the 1st respondent as per a circular vide No: JA.SAM.E 06 MMJI 2023 dated 07/08/2024 issued by Secretary of Water Resources Department is hereby produced as Annexure-A.
3. That at the same time, the land of respondents No. 02 to 32 mentioned in column No. 07 in below table was acquired by the 01st respondent as per order dated 21/02/2018. Aggrieved by the award of the 1st respondent, respondents No. 02 to 32 filed the reference petitions numbered as mentioned hereunder in column No. 03 below table against the schedule properties as mentioned in column No. 07 respectively:

TABLE

Name	Rank of the parties herein	LAC No.	Extent A-G	Sy. No.	Acquired land situated at	Item No. in Schedule
1	2	3	4	5	6	7

Danamma W/o Mallappa Magi @ Doddamani	Rspnt -2	492/18	06-00	461/1	Mahalbagayat	Item No.1
Meenakshi W/o Ravikant Doddamani,	Rspnt -3					
Shivakant S/o Ravikant Doddamani	Rspnt -4					
Vijayalakshmi D/o Ravikant Doddamani,	Rspnt -5					
Jayashree W/o Rachagond Gudekar,	Rspnt -6					
Padmashree W/o Ravi Maniknavar	Rspnt -7					
Chandrakant @ Chandrashekhar S/o Mallappa Doddamani	Rspnt -8					
Mahadevappa S/o Mallappa Doddamani	Rspnt -9					
Rajashree W/o Dundappa@Dondapp a Gadekar	Rspnt -10					
Gurubai W/o Basappa @ Basavaraj Doddamani	Rspnt -11	493/18	09-00	461/2	Mahalbagayat	Item No.2
Sangappa S/o Basappa Doddamani	Rspnt-12					
Roopa W/o Laxman Totakar	Rspnt -13					
Ningappa S/o Basappa Doddamani	Rspnt -14					
Nagamma W/o Yamanappa Doddamani	Rspnt -15	494/2018	01-20	461/3	Mahalbagayat	Item No.3
Subhash S/o						
Yamanappa Doddamani	Rspnt -16					
Ramesh S/o Yamanappa Doddamani	Rspnt -17					
Shrishail S/o Yamanappa Doddamani	Rspnt -18					

Surekha Yamanappa Doddamani,	D/o	Rspnt -19					
Prakash Yamanappa Doddamani	S/o	Rspnt -20					
Umesh Yamanappa Doddamani	S/o	Rspnt -21					
Shrishail S/o Yamanappa Doddamani		Rspnt -22	495/2018	01-20	461/4	Mahalbagayat	Item No.4
Gangadhar S/o Vidyahar Heralagi @ Doddamani,		Respo-23	497/2018	08-00	462/1	Mahalbagayat	Item No.5
Poornima @ Girijavva W/o Rajashekhar, Heralagi		Respo-24					
Prerana D/o Rajashekhar Heralagi,		Respo-25					
Naveen S/o Rajashekhar, Heralagi		Respo-26					
Babu S/o Shivamma Yamme @ Shiranagar		Respo-27	496/2018	02-00	461/5	Mahalbagayat	Item No.6
Shiddappa S/o Gurusiddappa Pujari		Respo-28	525/2018	03-10	996/1	Mahalbagayat	Item No.7
Baburav @ babu S/o Shivagondappa @ Shivappa Pujari		Respo-29	525/2018	03-10	996/1	Mahalbagayat	Item No.8
Apparay @ Appu S/o Shivagondappa @ Shivappa Pujari		Respo-30					
Annappa S/o Shivagondappa @ Shivappa Pujari		Respo-31					
Yashavanth S/o Shivagondappa @ Shivappa Pujari		Respo-32					

4. That the scheduled properties were acquired by the 1st respondent for the public purpose, i.e., for the purpose of construction of Rehabilitation Centre of Shirabur village.
5. That the respondent No. 02 to 32 filed reference petitions before the I Addl. District Judge and Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura, without joining the petitioner as one of the parties to the proceedings as the petitioner is a necessary party as well as proper party to the proceedings as it is the beneficiary of the land acquired.
6. The proceedings in above cases have been commenced before the Hon'ble court below without impleaded the petitioner and no copy of notice is served on the petitioner as it was necessary party to the proceedings and it is the duty of the Respondent No.02 to 32 to implead the petitioner in their cases.
7. That recently, the petitioner was made aware that without notice to the petitioner and without giving an opportunity of being to the petitioner, The Hon'ble I Addl. District Judge and Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura allowed:
 - i. LAC No.492/2018 filed by respondent No.02 to 10 by its judgment and order dated 26/03/2019 is hereby produced as Annexure-B,
 - ii. LAC No.493/2018 filed by respondent No.11 to 14 by its judgment and order dated 26/03/2019 is hereby produced as Annexure-B-1,
 - iii. LAC No.494/2018 filed by respondent No. 15 to 21 by its judgment and order dated 26/03/2019 is hereby produced as Annexure-B-2,
 - iv. LAC No.495/2018 filed by respondent No.22 by its judgment and order dated 26/03/2019 is hereby produced as Annexure-B-3,
 - v. LAC No.497/2018 filed by respondent No. 23 to 26 by its judgment and order dated 26/03/2019 is hereby produced as Annexure-B-4,

- vi. LAC No.496/2018 filed by respondent No.27 by its judgment and order dated 26/03/2019 is hereby produced as Annexure-B-5,
 - vii. LAC No.525/2018 filed by respondent No. 28 by its judgment and order dated 10/04/2019 is hereby produced as Annexure-B-6 and
 - viii. LAC No.526/2018 filed by respondent No. 29 to 32 by its judgment and order dated 10/04/2019 is hereby produced as Annexure-B-7.
8. That in all impugned judgments and orders vide Annexure-B to B-07 The Hon'ble court below fixed an exorbitant rate of amount of Rs. 2,541/- per Sq. Mtr. as a market value. The conclusion of said market value arrived by Hon'ble Court below is in utter discard of the framework formulated under The New Land Acquisition Act, 2013.
9. That impugned judgments and orders of the Hon'ble court below without notice to the petitioner and arraying the petitioner to proceedings is arbitrary and illegal. Hence this petition.
10. The petitioner is aggrieved by the judgment and order of the court below and the petitioner having no any alternative and efficacious remedy available than approaching this Hon'ble Court under Article 226 and 227 of the Constitution of India, on the following amongst other:

G R O U N D S

11. That judgments and orders of the court below vide Annexure-B to B-07 are illegal and opposed to law and against to the principles of natural justice.
12. That it is bounden duty of the claimants before the Hon'ble court below to implead the petitioner as a respondent as the petitioner is a necessary party in whose absence very claim petitions are bad for non-joinder of necessary party as contemplated under Order I Rule 09 of CPC

Provision regarding effect of non-joinder of necessary parties is enumerated, which reads asunder:

"9. Mis-joinder and non-joinder. No suit shall be defeated by reason of the mis-joinder or non-joinder of parties, and the Court may in every suit deal with the matter in controversy so far as regards the rights and interests of the parties actually before it:

Provided that nothing in this rule shall apply to non-joinder of a necessary party."

The petitioner, which is primarily responsible to pay compensation to land losers, is a necessary party under Order 1 Rule 9 of CPC and in absence of the petitioner in the proceedings before the court below is hit by Proviso to Rule 9 of Order 1 of CPC. It is also a well settled principle of law that non-joinder of necessary party is fatal to the case and non-curable defect and a proceeding will be defeated on said ground. It is pertinent to mention decision of the Hon'ble High Court of Madras in Rathinaswamy Vs. Achi Kannu: S. A No. 1698/2003 dated 04/03/2020 has held that-

" 21. When proper parties were not included in the Suit, the Suit is not bad for non-joinder, but if the parties who are not on the array of the parties in the Suit who are necessary parties in whose absence no final adjudication could be made, then the Suit has to be held bad for non-joinder of necessary parties. If proper parties are not added, the Court may allow further time affording opportunity to the Plaintiff to include them. But if the necessary parties were omitted to be included in the Suit, then the Plaintiff has to face the legal consequence of dismissal of the Suit. In the absence of necessary party, no effective decree could be passed. In short, non-joinder of proper party is not fatal while non-joinder of necessary party is fatal

to the case. When the Court sees that a particular party, who has been ignored by the Plaintiff in the suit, there is no option for the Court except to dismiss the same”.

13. That the petitioner, being a beneficiary of the UKP for which the land has been acquired, is a ‘Person Interested’ as defined under Section 3(x)(i) of the New Land Acquisition Act, 2013 has been held by the courts in a catena of cases. Particularly, in MSA No.119/2023 decided on 23-11-2024 in Sri. C. B. Poojarappa Vs. SLAO and this Hon’ble Court of Principal Bench held that the Kaveri Niravari Nigam, a company established for Kaveri basin like the present petitioner for Upper Krishna Project is a ‘person interested’ to be made as party and to be heard to determine just and proper compensation for an acquired land and is an aggrieved person and thus, a proper and necessary party under Order I Rule 10 of CPC. In said judgment, the judgment and order passed by the reference court was set aside and matter was remitted back for fresh consideration. In Para 16 of the judgment, it is specifically held as under:

“16..., second respondent beneficiary was not made party in the Reference Court as also before the First Appellate Court and straightaway second respondent is made a party in this appeal by way of implement. Therefore, this court is of the opinion that the matter must be is (sic) remanded to the Reference Court and impugned award passed by the Reference Court and the First Appellate Court will have to be set aside. The second respondent beneficiary will have to be made as a party in the Reference Court and parties are to be given opportunity to adduce their further evidence, if they are so advised, either oral, documentary or both.”

14. That it is principle of law that when a necessary party is not made party to the proceedings and an order is passed in his absence, such order is not tenable so far as such party is concerned. In present case, the petitioner, being a necessary party was not joined in the impugned judgment and award, can very well challenge through a writ petition. On question of maintainability of writ petition in such circumstance, much water is flown under the bridge. In fact, in Writ petition No. 20980/2022 (LA-KHB) dated 14/08/2024, wherein, a land was acquired for KHB and compensation was determined by a SLAO and against said order a reference made and compensation was enhanced without notice to the KHB and without joining the KHB as a party. In such juncture, the KHB filed a writ petition to set aside the award of the reference court and Writ petition No. 20980/2022 (LA-KHB) was allowed by this Hon'ble court its judgment order dated 14/08/2024 and remanded the matter for fresh consideration.
15. That further, already many writ petitions are filed before this Hon'ble court by the same petitioner by challenging judgments and awards passed by the reference courts. In fact, the judgment and award in LAC No. 510/2018 passed by the 1st Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalakote was challenged in W.P. No. 203801/2024 (LA-RES) and order of stay dated 18/12/2024 is hereby produced as Annexure-C-1 and the judgment and award in LAC No. 485/2018 passed by the 1st Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalakote was challenged in W.P. No. 203783/2024 (LA-RES) and order of stay dated 18/12/2024 is hereby produced as Annexure-C-2.

16. That even on merit of the case, the market value of schedule property arrived by the Hon'ble court below is arbitrary and illegal. The method adopted by the court is unknown to the existing framework of law. Legal realm framework provided under the Act is as under:

- i. In nutshell, the process of fixation of average market value of a land is primarily governed by Section 26, which reads as under: "*26. Determination of market value of land by Collector.—*
(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—
(a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
(b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
(c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher."

- ii. In the present case, clause (b) of Section 26 of the Act is adopted by this Hon'ble Court and in such circumstance, Explanation 1 and 2 to Section 26 are relevant to reproduce as under:

"Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three

years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

iii. A Conjoint reading of cause (b) and Explanation 01 and 02, make clear that when the clause (b) is adopted to determine the average market value of a land, then it is controlled by Explanation 01 and 02, which mandate to take into account the:

- a. sale deeds or the agreements to sell registered;*
- b. for similar type of area in the near village or near vicinity area;*
- c. during immediately preceding three years of the year in which such acquisition of land is proposed to be made"*
- d. one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.*

iv. As such, to determine the average market value of a land under Section 26(b), it is required to take into account one half of total numbers of sale deeds or agreement to sale having highest sale price made in the near village or near vicinity area in last three years prior proposed acquisition of land. In instant case, the 2nd respondent, applying the criteria stated above, had sought the information on sale deeds executed regarding in the proposed village, where land is proposed acquisition. However, Hon'ble Court below, arbitrarily has taken into consideration irrelevant aspects and determined the average market value at exorbitant rate. It is humbly submitted that the conclusion arrived by

Hon'ble Court below is in utter discard of the framework formulated under Section 26 (b) R/W Explanation: 01 and 02 on two grounds: firstly, the land acquired in present case by the 1st respondent is not a non-agricultural land and secondly, the average market value shall not be based on only three sale deeds, rather it is mandatory to take into consideration of *one-half of the total number of sale deeds or the agreements to sell during immediately preceding three years of the year in which such acquisition of land is proposed to be made*. Therefore, the impugned judgment and order passed by Hon'ble court below is contrary to the mandatory criteria provided Section 26 (b) R/w Explanation 01 and 02 of the Act and it not tenable either under law or on facts. Therefore the impugned judgment and order are not sustainable under the law.

17. The petitioner seeks leave of this Hon'ble court to raise, urge and plead such other grounds available to it at the hearing.
18. That passing of impugned judgment and order was not informed to the petitioner as it was not a party to the proceedings. It was recently petitioner was made aware that such judgment and order passed and it took some time to get the relevant documents and approval from the higher authorities. There was time spent in engaging the counsels to file the present petitions. Therefore, there is delay in filing the petition and said delay is due to the bonafide reasons stated.
19. The petitioner has not filed any other petition/appeal before any other Court of law on the cause of action urged in this petition.

GROUND FOR INTERIM PRAYER:

20. That the impugned order is erroneous as it is based on misconceived facts and law. Particularly, the Hon'ble court below failed to notice that the petitioner is a company owned by the Government of Karnataka to implement UKP and it is the petitioner, which is responsible to pay the compensation awarded by the Hon'ble court below in instant cases. Therefore, it is a necessary party without whose presence proceedings before the Hon'ble court below is nothing but nullity. Further, the compensation fixed by the Hon'ble court is exorbitant and adopted a method unknown to the existing formwork of law. Nevertheless, respondents No. 02 to 32 are making hectic efforts to execute the judgment and order during pendency of this petition and present petition may become infructuous. Further, in identical matters, this Hon'ble court has granted stay of operation of judgments and awards as per Annexure-C-1 and C-2. Therefore, an interim order staying the operation of the judgment and order is required in the interest of justice.

21. PRAYER:

Wherefore, the petitioner respectfully prays that this Hon'ble Court may be pleased to issue a Writ of certiorari quashing the judgment and orders passed by the Hon'ble I Addl. District judge & The Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura in;

- a) LAC No.492/2018 filed by respondent No.02 to 10 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B,
- b) LAC No.493/2018 filed by respondent No.11 to 14 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-1,
- c) LAC No.494/2018 filed by respondent No. 15 to 21 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-2,

- d) LAC No.495/2018 filed by respondent No.22 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-3,
- e) LAC No.497/2018 filed by respondent No. 23 to 26 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-4,
- f) LAC No.496/2018 filed by respondent No.27 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-5,
- g) LAC No.525/2018 filed by respondent No. 28 by its judgment and order dated 10/04/2019 hereby produced as Annexure-B-6 and
- h) LAC No.526/2018 filed by respondent No. 29 to 32 by its judgment and order dated 10/04/2019 hereby produced as Annexure-B-7.

Issue any other writ, order or direction as this Hon'ble court deems fit in the facts and circumstances of the case in the interest of justice and equity.

22. INTERIM PRAYER:

For the reasons stated in grounds for interim prayer, this Hon'ble court may be pleased to stay the judgment and order passed by the Hon'ble I Addl. District Judge & The Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura in;

- a) LAC No.492/2018 filed by respondent No.02 to 10 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B,
- b) LAC No.493/2018 filed by respondent No.11 to 14 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-1,
- c) LAC No.494/2018 filed by respondent No. 15 to 21 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-2,
- d) LAC No.495/2018 filed by respondent No.22 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-3,

- e) LAC No.497/2018 filed by respondent No. 23 to 26 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-4,
- f) LAC No.496/2018 filed by respondent No.27 by its judgment and order dated 26/03/2019 hereby produced as Annexure-B-5,
- g) LAC No.525/2018 filed by respondent No. 28 by its judgment and order dated 10/04/2019 hereby produced as Annexure-B-6 and
- h) LAC No.526/2018 filed by respondent No. 29 to 32 by its judgment and order dated 10/04/2019 hereby produced as Annexure-B-7, pendency of this writ petition.

SCHEDULE PROPERTY

ITEM No. 1:

Landed property measuring 06 acres of land bearing Sy. No 461/1 of Mahalbagayat village, Tq. and Dist.Vijayapur.

ITEM No. 2:

Landed property measuring 09 acre of land bearing Sy. No 461/2 of Mahalbagayat village, Tq. and Dist.Vijayapur.

ITEM No. 3:

Landed property measuring 01 acre 20 gunta of land bearing Sy. No 461/3 of Mahalbagayat village, Tq. and Dist.Vijayapur

ITEM No. 4:

Landed property measuring 01 acre 20 gunta of land bearing Sy. No 461/4 of Mahalbagayat village, Tq. and Dist.Vijayapur.

ITEM No. 5:

Landed property measuring 08 acres of land bearing Sy. No 462/1 of Mahalbagayat village, Tq. and Dist.Vijayapur.

ITEM No. 6:

Landed property measuring 02 acres of land bearing Sy. No 461/5 of Mahalbagayat village, Tq. and Dist.Vijayapur.

ITEM No. 7:

Landed property measuring 03 acre 10 gunta of land bearing Sy. No 996/1 of Mahalbagayat village, Tq. and Dist.Vijayapur.

ITEM No. 8:

Landed property measuring 03 acre 21 guntas of land bearing Sy. No 996/1 of Mahalbagayat village, Tq. and Dist.Vijayapur.

Kalaburgi
09-06-2025
Address For Service:

Sri.P.G.Yatnal
and Associates,
No.200/A, 10th Main,
Rajajinagar, Bangalore-560010
Mob.No.9972423442

ADVOCATE FOR PETITIONER
(P. G. YATNAL

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ANNEXURE A-

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ:ಜಸಂಇ 06 ಎಂಎಂಜಿ 2023

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
ವಿಕಾಸಸೌಧ,

ಬೆಂಗಳೂರು, ದಿನಾಂಕ:07.08.2024

ಸುತ್ತೋಲೆ

ರಾಜ್ಯ ಸರ್ಕಾರವು ವಿವಿಧ ಯೋಜನೆಗಳಿಗಾಗಿ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಕಾಲಕಾಲಕ್ಕೆ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರ ಪಾವತಿಸುವಂತೆ ಮತ್ತು ಮಾರುಕಟ್ಟೆ ದರವನ್ನು ಮರು ನಿಗದಿಪಡಿಸುವಂತೆ ಕೋರಿ ಭೂ ಮಾಲೀಕರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಎಲ್.ಎಸ್. ಎಲ್.ಎಸ್.ಎ, ಎಂ.ಎ, ಓ.ಎಸ್, ರಿಟ್ ಅರ್ಜಿ, ಎಂ.ಎಸ್.ಎ, ಎಸ್.ಎಲ್.ಪಿ ಮತ್ತು ಇತರೆ ಪ್ರಕರಣಗಳನ್ನು ದಾಖಲಿಸುತ್ತಿದ್ದು, ಸದರಿ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಮತ್ತು ಕಲವೊಂದು ಪ್ರಕರಣಗಳಲ್ಲಿ ಇಲಾಖೆಯನ್ನು ಪ್ರತಿವಾದಿ/ಎದುರುದಾರರನ್ನಾಗಿಸಿ ರಾಜ್ಯದ ಹಲವಾರು ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಮತ್ತು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾವೆಗಳನ್ನು ದಾಖಲಿಸಲಾಗುತ್ತಿದೆ.

K.B.J.N.L.

DATE	16/08/2024	ದಿನಾಂಕ:07.08.2024ರ ಸುತ್ತೋಲೆ ಹಾಗೂ
M.D.	ದಿನಾಂಕ: 04.2024ರ ತಿದ್ದುಪಡಿಯಲ್ಲಿ ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ	
T.D.	ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ	
G.M.A.	ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ	
G.M.F.	ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಈಗಾಗಲೇ ದಾಖಲಾಗಿ ವಿಚಾರಣೆ ನಡೆಯುತ್ತಿರುವ /ಇನ್ನು ಮುಂದೆ	
C.S.	ದಾಖಲಾಗುವ ಎಲ್ಲಾ ಎಲ್.ಎಸ್. ಓ.ಎಸ್, ರಿಟ್ ಮತ್ತು ಎಕ್ಸ್‌ಕ್ಯೂಶನ್ ಪೀಟಿಷನ್ ಇತರೆ	

ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ನಿಗಮ/ಹಿರಿಯರೊಂದಿಗೆ ಮಾತನಾಡುವುದು ಅವಶ್ಯಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ವಕೀಲರು/ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರುವಂತೆ ಸೂಚಿಸಿದೆ.

ಅ/ಜೆ-2/16

ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆಯಡಿಯಲ್ಲಿನ ಯೋಜನೆಗಳ ಅನುಷ್ಠಾನಕ್ಕಾಗಿ ಕಂಪನಿ ಕಾಯ್ದೆ, 1956ರನ್ವಯ ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ ಮತ್ತು ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ (ಸರ್ಕಾರಿ ಸ್ವಾಮ್ಯದ) 4 ನಿಗಮಗಳನ್ನು ರಚಿಸಲಾಗಿದೆ. ಯೋಜನೆಗಳ ತ್ವರಿತ ಅನುಷ್ಠಾನ ಮಾಡುವ ಹಾಗೂ ಪೂರ್ಣಗೊಂಡ ಯೋಜನೆಗಳ ನಿರ್ವಹಣೆ ಉದ್ದೇಶದಿಂದ ಯೋಜನೆಗೆ ಸಂಬಂಧಿಸಿದ ಎಲ್ಲಾ ಆಸ್ತಿ ಮತ್ತು ಋಣವನ್ನು ಈ ನಿಗಮಗಳಿಗೆ ವರ್ಗಾಯಿಸಲಾಗಿರುತ್ತದೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸರ್ಕಾರದಿಂದ ಆಡಳಿತಾತ್ಮಕ ಅನುಮೋದನೆಗೊಂಡು ಪ್ರಗತಿಯಲ್ಲಿರುವ ಯೋಜನೆಗಳು ಹಾಗೂ ಸರ್ಕಾರದಿಂದ ನಿಗಮದ ವ್ಯಾಪ್ತಿಗೆ ವರ್ಗಾವಣೆಗೊಂಡ ಎಲ್ಲಾ ಯೋಜನೆಗಳ ಭೂಸ್ವಾಧೀನ ಕಾಮಗಾರಿಗಳ ಅನುಷ್ಠಾನದ ಕಾರ್ಯಕ್ರಮವನ್ನು ನಿಗಮಗಳ ಹಂತದಲ್ಲಿಯೇ

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16 AUG 2024

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ಮುಂದುವರಿದು, ವಿವಿಧ ಯೋಜನೆಗಳಿಗಾಗಿ ನಿಗಮಗಳ ಕಚೇರಿ ಪೂರ್ವದಲ್ಲಿ ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ ಸ್ಥಾಪಿಸುವುದಕ್ಕೊಂದು ನಂತರ ನಿಗಮಕ್ಕೆ ಹಸ್ತಾಂತರಿಸಿದ ಹಾಗೂ ನಿಗಮಗಳು ಸ್ಥಾಪಿಸುವುದಕ್ಕೊಂದು ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರ ಪಾವತಿಸುವಂತೆ ಮತ್ತು ಮಾರುಕಟ್ಟೆ ದರವನ್ನು ಮರು ನಿಗದಿಪಡಿಸುವಂತೆ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್ಲಾ ಪ್ರಕರಣಗಳಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಆದೇಶಗಳನ್ವಯ ಪರಿಷ್ಕೃತ ಭೂ ಪರಿಹಾರ / ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರವನ್ನು ಭೂಮಾಲೀಕರಿಗೆ ಯೋಜನೆಯನ್ನು ಅನುಷ್ಠಾನಗೊಳಿಸುತ್ತಿರುವ/ ನಿರ್ವಹಿಸುತ್ತಿರುವ ನಿಗಮಗಳು ರಾಜ್ಯ ಸರ್ಕಾರವು ಆಯವ್ಯಯದಲ್ಲಿ ಅವುಗಳಿಗೆ ಹಂಚಿಕೆ ಮಾಡುವ ಅನುದಾನದಿಂದ ಪಾವತಿಸಲಾಗುತ್ತದೆ.

ಮೇಲ್ಕಂಡ ಅಂಶಗಳು ಹಾಗೂ ಕಂದಾಯ ಇಲಾಖೆಯ ದಿನಾಂಕ: 07.03.2024ರ ಸುತ್ತೋಲೆ, ದಿನಾಂಕ: 19.04.2024ರ ತಿದ್ದುಪಡಿಯಲ್ಲಿ ಪ್ರಸ್ತಾಪಿಸಿರುವ ಅಂಶಗಳು ಹಾಗೂ ಕಾನೂನು, ನ್ಯಾಯ ಮತ್ತು ಮಾನವ ಹಕ್ಕುಗಳ ಇಲಾಖೆಯು ಟಿಪ್ಪಣಿ ಸಂಖ್ಯೆ: ಲಾ 137 ಅಭಿಪ್ರಾಯ 2024 ದಿನಾಂಕ: 31.07.2024ರಲ್ಲಿ ನೀಡಿರುವ ಅಭಿಪ್ರಾಯದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆಯ 4 ನಿಗಮಗಳಡಿಯಲ್ಲಿ ಪ್ರತ್ಯೇಕ ಕಾನೂನು ಕೋಶವಿದ್ದು, ಭೂಸ್ಥಾಧೀನಕ್ಕೆ ಸಂಬಂಧಿಸಿದ ನ್ಯಾಯಾಲಯ ಪ್ರಕರಣಗಳಲ್ಲಿ implead ಆಗುವ/ ಅಪೀಲು ದಾಖಲಿಸುವ/ಪರಿಹಾರ ಪಾವತಿಸುವ ಕುರಿತು ನಿಗಮಗಳ ಹಂತದಲ್ಲಿ ಕಾನೂನಾತ್ಮಕವಾಗಿ ಪರಿಶೀಲಿಸಿ/ವಿಮರ್ಶಿಸಿ, ನಿಯಮಾನುಸಾರ ಸೂಕ್ತ ನಿರ್ಣಯಗಳನ್ನು ತೆಗೆದುಕೊಳ್ಳಲು ಕ್ರಮವಹಿಸಲು ಸೂಚಿಸಲಾಗಿದೆ.

This document is referred to as
Annexure. I in the Affidavit of
Smt./Sh. Praveen Kumar

(ಕೃಷಿ ಮೂರ್ತಿ ಬಿ. ಕುಲಕರ್ಣಿ)
ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿ
ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ.

NOTARY PUBLIC

ಇವರಿಗೆ:

1. ಪ್ರವಸಾಪಕ ನಿರ್ದೇಶಕರು, ಕೃಷಿ, ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
2. ಪ್ರವಸಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
3. ಪ್ರವಸಾಪಕ ನಿರ್ದೇಶಕರು, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
4. ಪ್ರವಸಾಪಕ ನಿರ್ದೇಶಕರು, ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
5. ಆಯುಕ್ತರು, ಪ್ರಸಾರ್ವತೆ ಉಪನಿರ್ಮಾಣ, ಬೆಂಗಳೂರು.
6. ನಿರ್ದೇಶಕರು, ಕಾಡಾ ನಿರ್ದೇಶನಾಲಯ, ಬೆಂಗಳೂರು.
7. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
8. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ಅಭಿವೃದ್ಧಿ ಸುರಕ್ಷತಾ ಸಂಸ್ಥೆ, ಬೆಂಗಳೂರು.
9. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, AC-IWRM, ಬೆಂಗಳೂರು.
10. ನಿರ್ದೇಶಕರು, ಕೆ.ಇ.ಆರ್.ಎಸ್. ಕೆ.ಆರ್.ಸಾಗರ.
11. ನಿರ್ದೇಶಕರು, ಫಾಲ್ಗುಣಿ, ಧಾರವಾಡ.
12. ಸರ್ಕಾರದ ಅಪರ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಯವರ ಆಪ್ತ ಕಾರ್ಯದರ್ಶಿಗಳು, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ವಿಕಾಸ ಸೌಧ, ಬೆಂಗಳೂರು.
13. ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಯವರ ಆಪ್ತ ಕಾರ್ಯದರ್ಶಿ, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ವಿಕಾಸ ಸೌಧ, ಬೆಂಗಳೂರು.
14. ಸರ್ಕಾರದ ಜಂಟಿ ಕಾರ್ಯದರ್ಶಿ (ಕಬಿಜಿಎನ್), ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
15. ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ (ಎಂಎಂಎಂ), ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
16. ವಿಶೇಷ ಕರ್ತವ್ಯಾಧಿಕಾರಿ, ತಾಂತ್ರಿಕ-1/2/3, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
17. ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ, ತಾಂತ್ರಿಕ-4/5/ಕಾಡಾ, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
18. ತಾಂತ್ರಿಕ ಸಹಾಯಕರು, ತಾಂತ್ರಿಕ-6/7, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
19. ಹೆಚ್ಚುವರಿ ಪ್ರತಿಗಳು.

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Translated copy of Annexure-A

Government of Karnataka

No.: JSAME 06MMG 2023

Government of Karnataka Secretariat

Vikas Soudha Multi-store Building Bangalore,

Dated 07-08-2024.

Circular

Landowners are filing LAC, LACA, MA, OS, Writ Petition, MFA, MSA, SLP and other cases in the concerned courts seeking payment of additional land compensation and re-fixation of market rates in respect of lands acquired by the State Government from time to time under the Land Acquisition Act for various projects. In the said cases, the Government and the land acquisition authorities and in some cases the Department are being filed as respondents/opponents in several courts of the state and Supreme Court.

In the circular dated 07-03-2024 of the Revenue Department and the amendment dated 09-04-2024, it has been directed that the concerned counsels should bring notice to the Hon'ble Court that it is necessary and mandatory to make the concerned beneficiary Department/ Corporation/ Boards as respondents at initial state in all LAC, OS, writs and execution petitions already filed/pending/to be filed in the Hon'ble Courts seeking payment of additional compensation in respect of lands acquired under the Land Acquisition Act in connection with the work of various Central and State Government schemes.

For the implementation of schemes under the Water Resources Department, the following companies are incorporated under the Companies Act, 1956: Krishna Bhagya Jala Nigam Limited, Karnataka Irrigation Corporation

Limited, Cauvery Irrigation Corporation Limited and Vishweshwarayya Jala Nigam Limited (Government Owned) 4 Corporations have been formed. With the aim of expeditious implementation of the projects and management of the completed projects, all the assets and liabilities related to the projects have been transferred to these corporations. In this context, the implementation of land acquisition works of all the projects that have been administratively approved by the government and are in progress and the jurisdiction of the corporation has been transferred by the government and corporations shall manage by them at their office level.

Land acquired by the Resource Department for various projects before the formation of the corporation and later handed over to the corporation and in all cases filed in the concerned courts for the acquisition of lands and payment of additional land compensation and re-fixing of the market price, the revised land compensation/additional land compensation shall be paid to the landowners from the grants allocated to them by the State Government in the budget.

in view of subject discussed above, circular dated 07/03/2024, contents of amended circular dated 19/04/2024, note of Law justice and Human Rights department vide No.: La 137 Opinion 2024 dated 31-07-2024 and as there is a legal cell in all 04 corporations therefore, in all cases, where the corporations shall be impleaded or appeal filed/ has to be filed or payment shall be made, it shall be advised to take action at the corporation level itself as per law.

(Krishnamurthy B. Kulkarni)

Secretary to the Government

Department of Water Resources.

True and correct translated copy of Annexure- A .

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

Sri Raghavendra Gowda B.G.,

B.A.L., LL.B.,

**I Additional District Judge,
Vijayapura**

Dated this the 26th day of March, 2019

L.A.C.No.492/2018

BETWEEN:

1. Danamma W/o Mallappa Magi @ Doddamani,
Age: 62 years, Occ: Household Work.
2. Ravikanth S/o Mallappa Doddamani
Deceased by his L.Rs.
 - 2A. Meenaxi W/o Ravikanth Doddamani,
Age: 46 years, Occ: Household Work.
 - 2B. Shivakanth S/o Ravikanth Doddamani,
Age: 20 years, Occ: Agriculture.
 - 2C. Vijayalaxmi D/o Ravikanth Doddamani,
Age: 18 years, Occ: Household Work.
3. Jayashree W/o Rachagond Gadekar,
Age: 54 years, Occ: Household Work.
4. Padmashri W/o Ravi Maniknavar,
Age: 46 years, Occ: Household Work.
5. Chandrakant @ Chandrashekhar S/o Mallappa
Doddamani, Age: 44 years, Occ: Agriculture/
Business.

6. Mahadevappa S/o Mallappa Doddamani,
Age: 41 years, Occ: Agriculture.
7. Rajashree W/o Dundappa @ Dondappa Gadekar,
Age: 52 years, Occ: Household Work.

All are R/o Basav Nagar, Bagalkot Road,
Vijayapura.

Claimants/Applicants.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.
2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.
3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

**(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)**

JUDGMENT

1. This is a petition filed under Section 64 of
the Right to Fair Compensation and Transparency in
Land Acquisition, Rehabilitation and Resettlement Act,
2013 for enhancement of the compensation arising out

of award under LAQ:SR:No.28/2014-15, which was pronounced on 21-02-2018 and 11(1) Notification is dated 05-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of construction of Rehabilitation Centre of Shirabur Village through a Notification dated 05-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 21-02-2018. In the award, the market value of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimants are as under:

Sy.No.	Acquired Area A-G	Village
461/1	6-00	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimants have filed their protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimants in the petition are that, the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps,

District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being

called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is known as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and

also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimants only in order to get more compensation have exaggerated the potentiality of the land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.485 to 497 of 2018 with L.A.C. No.484 of 2018 for the purpose

of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.485 to 497 of 2018 with L.A.C.No.484 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.487/2018 and L.A.C.No.488/2018 by name Sidduba S/o Ramachandra Chavan has deposed on his behalf and behalf of claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-101. The respondents marked Copies of Award as per Ex.R-1 to Ex.R-14, Notices U/Sec.65(1) of the RFCTLARR Act were marked as per Ex.R-15 to Ex.R-28 and Notices U/Sec.65(2) of the RFCTLARR Act were marked as per Ex.R-29 to Ex.R-42.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the

claimants filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-101 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-23-Government Notification, which discloses that the acquired lands come within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-25-Notification and Ex.P-28-Letter and contended that Mahalbagayat area comes within the Vijayapura City Municipal limits and the same was declared as smaller urban area. Ex.P-26 is the Letter issued by CMC, Vijayapura stating that Sy.No.454, 455/1, 455/2, 456/1, 2, 456/1+2, 458/1, 458/2, 458/3, 461/1, 461/2, 461/3, 461/4, 461/5 and 462/1 come within the Vijayapura City Municipal Council. Learned Counsel for the claimants further argued that basing on Ex.P-1 to Ex.P-101, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimants are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimants are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands. The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?
2. Whether the claimants are entitled for enhancement of award amount as prayed for ?
3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order

for the following:

REASONS

13. **POINT No.1:-** It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 21-02-2018 and the reference application is filed on 26-03-2018. Hence, reference petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioners/claimants have proved that they have filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a

period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimants that the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital. Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers

are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration; they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and

surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.487/2018 and L.A.C.No.488/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and 101 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-14 are the Reference Applications. Ex.P-15 to Ex.P-20 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.455/2, Sy.No.456/1, 2, Sy.No.457/1+2, Sy.No.458/2, Sy.No.461/1 and Sy.No.462/1 of Mahalbagayat. Ex.P-21 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-22 is the Certified Copy of Local Planning Area Map of Vijayapura. Ex.P-23 is the Copy of Government Notification dated 02-04-2001. Ex.P-24 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-24 and the same is marked as Ex.P-24(a). Ex.P-25 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-26 is the Letter of Commissioner of CMC Vijayapura dated 26-06-2018. The claimant contended that in Ex.P-26 it has been certified that above acquired lands come under Vijayapura Corporation limits. Thus, from the above exhibits, it is clear that the acquired lands come within the limits of

Vijayapura Corporation limits and they are N.A. potential lands and capable for formation of layouts. Ex.P-27 is the Vijayapura Taluka Map. Ex.P-28 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-28, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-29 and Ex.P-30 are the Letters issued by the Assistant Commissioner, Vijayapura. Ex.P-31 is the Letter issued by the Commissioner, VDA, Vijayapura. Ex.P-32 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant is claiming fixing the market value on the squire metre basis and hence the said document is produced. Ex.P-33 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-34 to Ex.P-38 are the List of Auctioned Plots of Mahalabagayat Village

auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-39 to Ex.P-70 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-71 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-72 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-73 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-74 and Ex.P-75 are the Certified Copies of Compensation Payment Register, Tidagundi Village. Ex.P-76 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial purposes. Ex.P-77 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-78 is the Certified Copy of Award

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Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-79 is the Certified Copy of Sale Deed. Ex.P-80 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-81 is the Certified Copy of the Indemnity Bond. Ex.P-82 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-83 is the Certified Copy of Memorandum. Ex.P-84 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-85 is the Certified Copy of Indemnity Bond. Ex.P-86 is the Certified Copy of Memorandum. Ex.P-87 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-88 is the Certified Copy of Indemnity Bond. Ex.P-89 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-90 is the Certified Copy of Memorandum. Ex.P-91 is the Certified Copy of Additional Award in respect of Tidagundi Village. Ex.P-92 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-93 is the Certified Copy of Indemnity Bond. Ex.P-94 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-95 is the Certified Copy of

Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-96 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-97 is the Certified Copy of Consent Letter. Ex.P-98 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-99 is the Certified Copy of Indemnity Bond. Ex.P-100 is the Certified Copy of Possession Certificate. Ex.P-101 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents before the Court to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He

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admitted the suggestion that on the basis of the population notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He admitted the suggestion that the lands pertaining to the City of Vijayapura were called as lands of Mahalbagayat and KASABA. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He denied the suggestion that Indian Petrol Pump at Jamakhandi Main Road is situated 6-7 Km. away from the acquired lands. He further stated that the acquired lands were within half kilometre from the said Petrol Pump. He denied the suggestion that Vijayapura-Babaleshwar main road situated 6-7 km. distance from the acquired lands. He stated that the acquired lands situated within the distance of 30-feet. He denied the suggestion that except Solapur Road, Athani Road and Managuli Road, the Jamakhandi Road was not improved. He denied the suggestion that the facts stated by him in Para 16 of his examination-in-

chief were wrong. He admitted the suggestion that KSRTC Depot, Jorapur Peth, Sainik School, Shastri Colony, Godawari Hotel and District Hospital were situated in Athani Main Road and the said Road is proceed towards western side of the Vijayapura and Jamakhandi road proceeds towards northern side. He denied the suggestion that the distance between two roads were about 8-10 km. He stated that the distance between two roads was 1-km. He denied the suggestion that he narrated false facts in Para 18 of his examination-in-chief. He admitted the suggestion that the property shown in Para No.18 of his examination-in-chief comes within old Vijayapura. He denied the suggestion that the said properties were situated at the distance of 8-10 km. from the acquired lands. He stated that the distance between acquired lands and said properties is about 1-km. He denied the suggestion that he has falsely stated in Para No.19 of the examination-in-chief. He deposed that the properties shown in Para No.19 were situated near Athani Road. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He denied

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the suggestion that he was deposing falsely stating that towards all the directions of the acquired lands were fully developed. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He admitted that he has falsely stated in Para 22 as four Medical Colleges in Vijayapura town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in Para 23 of the examination-in-chief, he has deposed falsely about industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that

sale of sites was on foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-34 to Ex.P-38 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-34 to Ex.P-38 were high. He admitted the suggestion that Ex.P-23 Notification relating to comprehensive development of period of 20 years of Vijayapura. He denied the suggestion that the properties shown in Ex.P-24 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-39 to Ex.P-70, were pertaining to Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-39 to Ex.P-70 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the

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acquired lands were not fetch more price. He denied the suggestion that Ex.P-71 does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-79 is a created document. He denied the suggestion that Ex.P-33 does not applicable to acquired lands. He denied all the contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-39 to Ex.P-70 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 05-07-2014. the details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	41	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	42	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	43	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	44	5.7.12	3267/12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	45	2.8.12	4442/12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	46	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	47	7.8.12	4649/12-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	48	22.8.12	5220/12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85
11.	49	22.8.12	5224/12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	50	27.12.12	10240/12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	51	8.1.13	10580/12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	52	22.2.13	12442/12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	53	27.5.13	1701/13-14	1020/1-B Plot-43 1020/4-D Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33

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16.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	57	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	59	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	60	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	62	12.11.13	8709/13 -14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	63	28.12.13	10569/1 3-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
31.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	70	23.6.14	4857/14 -15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land

by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale

Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-34 to Ex.P-38 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-34 to Ex.P-38 would not indicate the normal value of the lands. Hence, Ex.P-34 to Ex.P-38 were not taken into consideration. In the above said

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table, Ex.P-41 to Ex.P-45, Ex.P-47 to Ex.P-52, Ex.P-59 and Ex.P-60 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-57, the price per squire metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands. Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur- ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/ 11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/ 11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	46	3.8.12	4506/1 2-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	54	26.6.13	3069/	1020/4-D	135	10,17,100/-	7534.07

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			13-14	Plot-15	Sq.Mtr.		
6.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	62	12.11.13	8709/1 3-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	63	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
15.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
17.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	70	23.6.14	4857/1 4-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the

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Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-39, Ex.P-53, Ex.P-56, Ex.P-58, Ex.P-62, Ex.P-66, Ex.P-67, Ex.P-69 and Ex.P-70 were taken into consideration. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands.

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
3.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
4.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
6.	66	25.2.14	13275/13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	67	10.3.14	13890/13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	69	16.5.14	2129/14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	70	23.6.14	4857/14	1019/1A-B	135	11,42,421/-	8462.37

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	-15	Plot-26	Sq.Mtr.
			76217.48

The average Highest Sale Price of above said exhibited Dry lands:

$$\text{Rs. } \frac{76217.48}{9} = 8468.60/- \text{ per Sq.Metre for land}$$

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimants relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-71. In Ex.P-71, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is

developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimants contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development

charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimants are entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimants is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimants in respect of land bearing R.S.No.461/1 are entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 6-acres of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation

and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for the subsequent period till the date of payment or deposit. The claimants are entitled to all statutory benefits available under the law.

The amount, if any, already paid to the claimants, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 26th day of March, 2019)

(Raghavendra Gowda B.G.)

I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

ANNEXURE

List of Witnesses examined on behalf of Claimants:

P.W.1 : Sidduba S/o Ramachandra Chavan,
R/o Shivaji Peth, Near Upliburz, Vijayapura.

(In L.A.C. No.484/2018)

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimants:

Ex.P-1 to Ex.P-14 : Reference Applications filed before respondents.

Ex.P-15 to Ex.P-20 : C.C. of Order passed by Respondent No.1.

Ex.P-21 : C.C. of Notification issued by Under Secretary to Government, Health & Municipal Administration Department, Bengaluru.

Ex.P-22 : C.C. of Vijayapura City Map.

Ex.P-23 : C.C. of Notification issued by Under Secretary to Government, Department of Urban Development, Bengaluru.

Ex.P-24 : C.C. of Map.

Ex.P-24(a) : Acquired Area shown in Yellow Colour in Ex.P-24.

Ex.P-25 : Attested Copy of Gazette Notification No.UDD 153 MLR 2013, dated 20-12-2013.

Ex.P-26 : Letter of CMC, Vijayapura.

Ex.P-27 : Vijayapura Taluka Map.

Ex.P-28 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.

Ex.P-29 : Letter issued by Assistant Commissioner, Vijayapura.

Ex.P-30 : Letter issued by Assistant Commissioner, Vijayapura.

Ex.P-31 : Letter issued by Commissioner, VDA, Vijayapura.

Ex.P-32 : Letter of Assistant Controller, Rights and Measure Department, Vijayapura.

- Ex.P-33 : C.C. of Order passed in Writ Petition
No.201027/2015.
- Ex.P-34 to Ex.P-38 : Details of Auctioned Plots.
- Ex.P-39 to Ex.P-70 : C.C. of Sale Deeds.
- Ex.P-71 : C.C. of Judgment in Civil Appeal No.1645-
1648 of 2016.
- Ex.P-72 : C.C. of Order passed by the Court of the
Arbitrator National Highway Authority
of India, Deputy Commissioner, Vijayapura.
- Ex.P-73 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-74 & Ex.P-75 : C.C. of Compensation Payment
Register of Tidagundi Village.
- Ex.P-76 & Ex.P-77 : C.C. of Memorandums issued by
D.C., Vijayapura.
- Ex.P-78 : C.C. of Award No.NH 13/CALA/BJP/CR-
14/2011-12 Dated 11-10-2013.
- Ex.P-79 : C.C. of Sale Deed.
- Ex.P-80 : C.C. of Vouchers for payment of
Compensation.
- Ex.P-81 : C.C. of Indemnity Bond.
- Ex.P-82 : C.C. of Compensation Payment Register of
Tidagundi Village.
- Ex.P-83 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-84 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-85 : C.C. of Indemnity Bond.
- Ex.P-86 : C.C. of Memorandum issued by D.C.,
Vijayapura.
- Ex.P-87 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-88 : C.C. of Indemnity Bond.
- Ex.P-89 : C.C. of Compensation Payment Register of

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Tidagundi Village.

- Ex.P-90 : C.C. of Memorandum issued by D.C.,
Vijayapura.
- Ex.P-91 : C.C. of Excess & Additional Area Award
No.NH 13/CALA/BJP/CR-14/2012-13
dated 31-5-2016.
- Ex.P-92 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-93 : C.C. of Indemnity Bond.
- Ex.P-94 : C.C. of Compensation Payment Register of
Tidagundi Village.
- Ex.P-95 : C.C. of Toll Plaza Area Original Award
No.NH 13/CALA/BJP/CR-14/2015-16
dated 31-7-2016.
- Ex.P-96 : C.C. of Office Order passed by
Assistant Commissioner, Vijayapura &
Competent Authority for Land Acquisition,
NH.13 (Solapur Section).
- Ex.P-97 : C.C. of Agreement Letter.
- Ex.P-98 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-99 : C.C. of Indemnity Bond.
- Ex.P-100 : C.C. of Possession Certificate.
- Ex.P-101 : Valuation Report.

**(The above said exhibits were marked in L.A.C.
No.484/2018)**

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-14: Copies of Award No.LAQ:SR:28/
2014-15 dated 15-01-2018.
- Ex.R-15 to Ex.R-28 : Copies of Form of Reference to
the Court U/Sec.65(1) of the
RFCTLARR, Act, 2013.

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Ex.R-29 to Ex.R-42: Copies of Schedule U/Sec.65(2) of
the RFCTLARR, Act, 2013.

**(The above said exhibits were marked in L.A.C.
No.484/2018)**

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE-BH

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

Sri Raghavendra Gowda B.G.,
B.A.L., LL.B.,
I Additional District Judge,
Vijayapura

Dated this the 26th day of March, 2019

L.A.C.No.493/2018

BETWEEN:

1. Gurubai W/o Basappa @ Basavaraj Doddamani
@ Doddamani,
Age: 66 years, Occ: Agriculture/Household Work.
2. Sangappa S/o Basappa Doddamani @ Doddamani,
Age: 37 years, Occ: Agriculture.
3. Roopa W/o Laxman Totakar,
Age: 35 years, Occ: Agriculture/Household Work.
4. Ningappa S/o Basappa Doddamani @ Doddamani,
Age: 33 years, Occ: Agriculture.

All are R/o Basava Nagar, Bagalkot Road,
Vijayapura.

Claimants/Applicants.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.

2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.

3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.28/2014-15, which was pronounced on 21-02-2018 and 11(1) Notification is dated 05-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of

construction of Rehabilitation Centre of Shirabur Village through a Notification dated 05-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 21-02-2018. In the award, the market value of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimants are as under:

Sy.No.	Acquired Area A-G	Village
461/2	9-00	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimants have filed their protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimants in the petition are that, the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of

Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial

potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in

accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimants only in order to get more compensation have exaggerated the potentiality of the land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.485 to 497 of 2018 with L.A.C. No.484 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.485 to 497 of 2018 with L.A.C.No.484 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.487/2018 and L.A.C.No.488/2018 by name Sidduba S/o Ramachandra Chavan has deposed on his behalf and behalf of

claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-101. The respondents marked Copies of Award as per Ex.R-1 to Ex.R-14, Notices U/Sec.65(1) of the RFCTLARR Act were marked as per Ex.R-15 to Ex.R-28 and Notices U/Sec.65(2) of the RFCTLARR Act were marked as per Ex.R-29 to Ex.R-42.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimants filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-101 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-23-Government Notification, which discloses that the acquired lands come within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-25-Notification and Ex.P-28-Letter and contended that Mahalbagayat area comes within the

Vijayapura City Municipal limits and the same was declared as smaller urban area. Ex.P-26 is the Letter issued by CMC, Vijayapura stating that Sy.No.454, 455/1, 455/2, 456/1, 2, 456/1+2, 458/1, 458/2, 458/3, 461/1, 461/2, 461/3, 461/4, 461/5 and 462/1 come within the Vijayapura City Municipal Council. Learned Counsel for the claimants further argued that basing on Ex.P-1 to Ex.P-101, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimants are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimants are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands.

The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?
2. Whether the claimants are entitled for enhancement of award amount as prayed for ?
3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order
for the following:

REASONS

13. POINT No.1:- It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 21-02-2018 and the reference application is filed on 26-03-2018. Hence, reference

petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioners/claimants have proved that they have filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimants that the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired

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as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year.

Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds

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and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.487/2018 and L.A.C.No.488/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and 101 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-14 are the Reference Applications. Ex.P-15 to Ex.P-20 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.455/2, Sy.No.456/1, 2, Sy.No.457/1+2, Sy.No.458/2, Sy.No.461/1 and Sy.No.462/1 of Mahalbagayat. Ex.P-21 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-22 is the Certified Copy of Local Planning Area Map of Vijayapura. Ex.P-23 is the Copy of Government Notification dated 02-04-2001. Ex.P-24 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-24 and the same is marked as

Ex.P-24(a). Ex.P-25 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-26 is the Letter of Commissioner of CMC Vijayapura dated 26-06-2018. The claimant contended that in Ex.P-26 it has been certified that above acquired lands come under Vijayapura Corporation limits. Thus, from the above exhibits, it is clear that the acquired lands come within the limits of Vijayapura Corporation limits and they are N.A. potential lands and capable for formation of layouts. Ex.P-27 is the Vijayapura Taluka Map. Ex.P-28 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-28, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-29 and Ex.P-30 are the Letters issued by the Assistant Commissioner, Vijayapura. Ex.P-31 is the Letter issued by the Commissioner, VDA,

Vijayapura. Ex.P-32 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant is claiming fixing the market value on the squire metre basis and hence the said document is produced. Ex.P-33 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-34 to Ex.P-38 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-39 to Ex.P-70 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-71 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-72 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-73 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-74 and Ex.P-75 are the Certified Copies of Compensation Payment

Register, Tidagundi Village. Ex.P-76 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial purposes. Ex.P-77 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-78 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-79 is the Certified Copy of Sale Deed. Ex.P-80 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-81 is the Certified Copy of the Indemnity Bond. Ex.P-82 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-83 is the Certified Copy of Memorandum. Ex.P-84 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-85 is the Certified Copy of Indemnity Bond. Ex.P-86 is the Certified Copy of Memorandum. Ex.P-87 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-88 is the Certified Copy of

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Indemnity Bond. Ex.P-89 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-90 is the Certified Copy of Memorandum. Ex.P-91 is the Certified Copy of Additional Award in respect of Tidagundi Village. Ex.P-92 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-93 is the Certified Copy of Indemnity Bond. Ex.P-94 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-95 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-96 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-97 is the Certified Copy of Consent Letter. Ex.P-98 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-99 is the Certified Copy of Indemnity Bond. Ex.P-100 is the Certified Copy of Possession Certificate. Ex.P-101 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents before the Court

to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He admitted the suggestion that the lands pertaining to the City of Vijayapura were called as lands of Mahalbagayat and KASABA. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He denied the suggestion that Indian Petrol Pump at Jamakhandi Main Road is situated 6-7 Km. away from the acquired lands. He further stated that

the acquired lands were within half kilometre from the said Petrol Pump. He denied the suggestion that Vijayapura-Babaleshwar main road situated 6-7 km. distance from the acquired lands. He stated that the acquired lands situated within the distance of 30-feet. He denied the suggestion that except Solapur Road, Athani Road and Managuli Road, the Jamakhandi Road was not improved. He denied the suggestion that the facts stated by him in Para 16 of his examination-in-chief were wrong. He admitted the suggestion that KSRTC Depot, Jorapur Peth, Sainik School, Shastri Colony, Godawari Hotel and District Hospital were situated in Athani Main Road and the said Road is proceed towards western side of the Vijayapura and Jamakhandi road proceeds towards northern side. He denied the suggestion that the distance between two roads were about 8-10 km. He stated that the distance between two roads was 1-km. He denied the suggestion that he narrated false facts in Para 18 of his examination-in-chief. He admitted the suggestion that the property shown in Para No.18 of his examination-in-chief comes within old Vijayapura. He denied the

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suggestion that the said properties were situated at the distance of 8-10 km. from the acquired lands. He stated that the distance between acquired lands and said properties is about 1-km. He denied the suggestion that he has falsely stated in Para No.19 of the examination-in-chief. He deposed that the properties shown in Para No.19 were situated near Athani Road. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He denied the suggestion that he was deposing falsely stating that towards all the directions of the acquired lands were fully developed. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He admitted that he has falsely stated in Para 22 as four Medical Colleges in Vijayapura town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not

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fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in Para 23 of the examination-in-chief, he has deposed falsely about industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-34 to Ex.P-38 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-34 to Ex.P-38 were high. He admitted the suggestion that Ex.P-23 Notification relating to comprehensive development of period of 20 years of Vijayapura. He

denied the suggestion that the properties shown in Ex.P-24 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-39 to Ex.P-70, were pertaining to Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-39 to Ex.P-70 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-71 does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a

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small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-79 is a created document. He denied the suggestion that Ex.P-33 does not applicable to acquired lands. He denied all the contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-39 to Ex.P-70 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 05-07-2014. the details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	41	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	42	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	43	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	44	5.7.12	3267/12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74

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7.	45	2.8.12	4442/ 12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	46	3.8.12	4506/1 2-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	47	7.8.12	4649/1 2-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	48	22.8.12	5220/ 12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85
11.	49	22.8.12	5224/ 12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	50	27.12.12	10240/ 12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	51	8.1.13	10580/ 12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	52	22.2.13	12442/ 12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	57	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	59	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	60	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	62	12.11.13	8709/1 3-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	63	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56

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29.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
31.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	70	23.6.14	4857/1 4-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land

by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the

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average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of

market value has to be done. The claimant in his cross-examination admitted that Ex.P-34 to Ex.P-38 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-34 to Ex.P-38 would not indicate the normal value of the lands. Hence, Ex.P-34 to Ex.P-38 were not taken into consideration. In the above said table, Ex.P-41 to Ex.P-45, Ex.P-47 to Ex.P-52, Ex.P-59 and Ex.P-60 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-57, the price per square metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands. Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and

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traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/ 11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/ 11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	46	3.8.12	4506/1 2-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	62	12.11.13	8709/1 3-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	63	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
15.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
17.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	70	23.6.14	4857/1 4-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

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Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-39, Ex.P-53, Ex.P-56, Ex.P-58, Ex.P-62, Ex.P-66, Ex.P-67, Ex.P-69 and Ex.P-70 were taken into consideration. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands.

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Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
3.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65.
4.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
6.	66	25.2.14	13275/13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	67	10.3.14	13890/13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	69	16.5.14	2129/14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	70	23.6.14	4857/14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37
							76217.48

The average Highest Sale Price of above said exhibited Dry lands:

Rs. $\frac{76217.48}{9}$ = 8468.60/- per Sq.Metre for land

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards

the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimants relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-71. In Ex.P-71, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the

claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimants contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimants are entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimants is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimants in respect of land bearing R.S.No.461/2 are entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 9-acres of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair

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Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for the subsequent period till the date of payment or deposit. The claimants are entitled to all statutory benefits available under the law.

The amount, if any, already paid to the claimants, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 26th day of March, 2019)

(Raghavendra Gowda B.G.)

I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE

List of Witnesses examined on behalf of Claimants:

P.W.1 : Sidduba S/o Ramachandra Chavan,
R/o Shivaji Peth, Near Upliburz, Vijayapura.
(In L.A.C. No.484/2018)

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimants:

Ex.P-1 to Ex.P-14 : Reference Applications filed before respondents.

Ex.P-15 to Ex.P-20 : C.C. of Order passed by Respondent No.1.

- Ex.P-21 : C.C. of Notification issued by Under Secretary to Government, Health & Municipal Administration Department, Bengaluru.
- Ex.P-22 : C.C. of Vijayapura City Map.
- Ex.P-23 : C.C. of Notification issued by Under Secretary to Government, Department of Urban Development, Bengaluru.
- Ex.P-24 : C.C. of Map.
- Ex.P-24(a) : Acquired Area shown in Yellow Colour in Ex.P-24.
- Ex.P-25 : Attested Copy of Gazette Notification No.UDD 153 MLR 2013, dated 20-12-2013.
- Ex.P-26 : Letter of CMC, Vijayapura.
- Ex.P-27 : Vijayapura Taluka Map.
- Ex.P-28 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.
- Ex.P-29 : Letter issued by Assistant Commissioner, Vijayapura.
- Ex.P-30 : Letter issued by Assistant Commissioner, Vijayapura.
- Ex.P-31 : Letter issued by Commissioner, VDA, Vijayapura.
- Ex.P-32 : Letter of Assistant Controller, Rights and Measure Department, Vijayapura.
- Ex.P-33 : C.C. of Order, passed in Writ Petition No.201027/2015.
- Ex.P-34 to Ex.P-38 : Details of Auctioned Plots.
- Ex.P-39 to Ex.P-70 : C.C. of Sale Deeds.
- Ex.P-71 : C.C. of Judgment in Civil Appeal No.1645-1648 of 2016.
- Ex.P-72 : C.C. of Order passed by the Court of the Arbitrator National Highway Authority of India, Deputy Commissioner, Vijayapura.

- Ex.P-73 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-74 & Ex.P-75 : C.C. of Compensation Payment
Register of Tidagundi Village.
- Ex.P-76 & Ex.P-77 : C.C. of Memorandums issued by
D.C., Vijayapura.
- Ex.P-78 : C.C. of Award No.NH 13/CALA/BJP/CR-
14/2011-12 Dated 11-10-2013.
- Ex.P-79 : C.C. of Sale Deed.
- Ex.P-80 : C.C. of Vouchers for payment of
Compensation.
- Ex.P-81 : C.C. of Indemnity Bond.
- Ex.P-82 : C.C. of Compensation Payment Register of
Tidagundi Village.
- Ex.P-83 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-84 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-85 : C.C. of Indemnity Bond.
- Ex.P-86 : C.C. of Memorandum issued by D.C.,
Vijayapura.
- Ex.P-87 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-88 : C.C. of Indemnity Bond.
- Ex.P-89 : C.C. of Compensation Payment Register of
Tidagundi Village.
- Ex.P-90 : C.C. of Memorandum issued by D.C.,
Vijayapura.
- Ex.P-91 : C.C. of Excess & Additional Area Award
No.NH 13/CALA/BJP/CR-14/2012-13
dated 31-5-2016.
- Ex.P-92 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-93 : C.C. of Indemnity Bond.

- Ex.P-94 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-95 : C.C. of Toll Plaza Area Original Award No.NH 13/CALA/BJP/CR-14/2015-16 dated 31-7-2016.
- Ex.P-96 : C.C. of Office Order passed by Assistant Commissioner, Vijayapura & Competent Authority for Land Acquisition, NH.13 (Solapur Section).
- Ex.P-97 : C.C. of Agreement Letter.
- Ex.P-98 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-99 : C.C. of Indemnity Bond.
- Ex.P-100 : C.C. of Possession Certificate.
- Ex.P-101 : Valuation Report.

(The above said exhibits were marked in L.A.C. No.484/2018)

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-14: Copies of Award No.LAQ:SR:28/2014-15 dated 15-01-2018.
- Ex.R-15 to Ex.R-28 : Copies of Form of Reference to the Court U/Sec.65(1) of the RFCTLARR, Act, 2013.
- Ex.R-29 to Ex.R-42: Copies of Schedule U/Sec.65(2) of the RFCTLARR, Act, 2013.

(The above said exhibits were marked in L.A.C. No.484/2018)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA

Present :

Sri Raghavendra Gowda B.G.,

B.A.L., LL.B.,

**I Additional District Judge,
Vijayapura**

Dated this the 26th day of March, 2019

L.A.C.No.494/2018

BETWEEN:

1. Nagamma W/o Yamanappa Dodamani
@ Doddimani,
Age: 71 years, Occ: Agriculture/Household Work.
2. Subhash S/o Yamanappa Dodamani
@ Doddimani, Age: 58 years, Occ: Agriculture.
3. Ramesh S/o Yamanappa Dodamani @ Doddimani,
Age: 56 years, Occ: Agriculture.
4. Shrishail S/o Yamanappa Dodamani
@ Doddimani, Age: 52 years, Occ: Agriculture.
5. Surekha D/o Yamanappa Dodamani @ Doddimani
W/o Nilkanth Sambanni,
Age: 49 years, Occ: Agriculture/Household Work.
6. Prakash S/o Yamanappa Dodamani @ Doddimani,
Age: 48 years, Occ: Agriculture.
7. Umesh S/o Yamanappa Dodamani @ Doddimani,
Age: 46 years, Occ: Agriculture..

All are R/o Basava Nagar, Bagalkot Road,
Vijayapura.

Claimants/Applicants.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.
2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.
3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.28/2014-15, which was pronounced on 21-02-2018 and 11(1) Notification is dated 05-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the

respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of construction of Rehabilitation Centre of Shirabur Village through a Notification dated 05-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 21-02-2018. In the award, the market value of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimants are as under:

Sy.No.	Acquired Area A-G	Village
461/3	1-20	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimants have filed their protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The

respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimants in the petition are that, the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers

are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and

surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is known as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement

of objections, respondents contended that the method adopted by the respondent No.1 was proper and in accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimants only in order to get more compensation have exaggerated the potentiality of the land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.485 to 497 of 2018 with L.A.C. No.484 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.485 to 497 of 2018 with L.A.C.No.484 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.487/2018 and L.A.C.No.488/2018 by name Sidduba S/o Ramachandra Chavan has deposed on his behalf and behalf of claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-101. The respondents marked Copies of Award as per Ex.R-1 to Ex.R-14, Notices U/Sec.65(1) of the RFCTLARR Act were marked as per Ex.R-15 to Ex.R-28 and Notices U/Sec.65(2) of the RFCTLARR Act were marked as per Ex.R-29 to Ex.R-42.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimants filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-101 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-23-Government Notification, which discloses that the acquired lands come within the local planning area

of Vijayapura Town. The learned Counsel further relied on Ex.P-25-Notification and Ex.P-28-Letter and contended that Mahalbagayat area comes within the Vijayapura City Municipal limits and the same was declared as smaller urban area. Ex.P-26 is the Letter issued by CMC, Vijayapura stating that Sy.No.454, 455/1, 455/2, 456/1, 2, 456/1+2, 458/1, 458/2, 458/3, 461/1, 461/2, 461/3, 461/4, 461/5 and 462/1 come within the Vijayapura City Municipal Council. Learned Counsel for the claimants further argued that basing on Ex.P-1 to Ex.P-101, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimants are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimants are within the ring road limit

of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands. The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?
2. Whether the claimants are entitled for enhancement of award amount as prayed for ?
3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order
for the following:

REASONS

13. **POINT No.1:-** It is the specific contention of the respondents that the reference petition is barred by

limitation. On careful perusal of the Award, it is pronounced on 21-02-2018 and the reference application is filed on 26-03-2018. Hence, reference petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioners/claimants have proved that they have filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimants that the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits

under the new Act, 2013.. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City

Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in

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the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.487/2018 and L.A.C.No.488/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and 101 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-14 are the Reference Applications. Ex.P-15 to Ex.P-20 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.455/2, Sy.No.456/1, 2, Sy.No.457/1+2, Sy.No.458/2, Sy.No.461/1 and Sy.No.462/1 of Mahalbagayat. Ex.P-21 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-22 is the Certified Copy of Local Planning Area Map of Vijayapura. Ex.P-23 is the Copy

of Government Notification dated 02-04-2001. Ex.P-24 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-24 and the same is marked as Ex.P-24(a). Ex.P-25 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-26 is the Letter of Commissioner of CMC Vijayapura dated 26-06-2018. The claimant contended that in Ex.P-26 it has been certified that above acquired lands come under Vijayapura Corporation limits. Thus, from the above exhibits, it is clear that the acquired lands come within the limits of Vijayapura Corporation limits and they are N.A. potential lands and capable for formation of layouts. Ex.P-27 is the Vijayapura Taluka Map. Ex.P-28 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-28, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at

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the time of award. Ex.P-29 and Ex.P-30 are the Letters issued by the Assistant Commissioner, Vijayapura. Ex.P-31 is the Letter issued by the Commissioner, VDA, Vijayapura. Ex.P-32 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant is claiming fixing the market value on the squire metre basis and hence the said document is produced. Ex.P-33 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-34 to Ex.P-38 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-39 to Ex.P-70 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-71 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-72 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-73 is the Certified Copy of Memorandum dated 17-10-2011 for

permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-74 and Ex.P-75 are the Certified Copies of Compensation Payment Register, Tidagundi Village. Ex.P-76 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial purposes. Ex.P-77 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-78 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-79 is the Certified Copy of Sale Deed. Ex.P-80 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-81 is the Certified Copy of the Indemnity Bond. Ex.P-82 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-83 is the Certified Copy of Memorandum. Ex.P-84 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-85 is the Certified Copy of Indemnity Bond. Ex.P-86 is the

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Certified Copy of Memorandum. Ex.P-87 is the Certified Copy of Vouchers for Payment of Compensation, Ex.P-88 is the Certified Copy of Indemnity Bond. Ex.P-89 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-90 is the Certified Copy of Memorandum. Ex.P-91 is the Certified Copy of Additional Award in respect of Tidagundi Village. Ex.P-92 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-93 is the Certified Copy of Indemnity Bond. Ex.P-94 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-95 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-96 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-97 is the Certified Copy of Consent Letter. Ex.P-98 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-99 is the Certified Copy of Indemnity Bond. Ex.P-100 is the Certified Copy of Possession Certificate. Ex.P-101 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion

that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents before the Court to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He admitted the suggestion that the lands pertaining to the City of Vijayapura were called as lands of Mahalbagayat and KASABA. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired

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lands. He denied the suggestion that Indian Petrol Pump at Jamakhandi Main Road is situated 6-7 Km. away from the acquired lands. He further stated that the acquired lands were within half kilometre from the said Petrol Pump. He denied the suggestion that Vijayapura-Babaleshwar main road situated 6-7 km. distance from the acquired lands. He stated that the acquired lands situated within the distance of 30-feet. He denied the suggestion that except Solapur Road, Athani Road and Managuli Road, the Jamakhandi Road was not improved. He denied the suggestion that the facts stated by him in Para 16 of his examination-in-chief were wrong. He admitted the suggestion that KSRTC Depot, Jorapur Peth, Sainik School, Shastri Colony, Godawari Hotel and District Hospital were situated in Athani Main Road and the said Road is proceed towards western side of the Vijayapura and Jamakhandi road proceeds towards northern side. He denied the suggestion that the distance between two roads were about 8-10 km. He stated that the distance between two roads was 1-km. He denied the suggestion that he narrated false facts in Para 18 of his

examination-in-chief. He admitted the suggestion that the property shown in Para No.18 of his examination-in-chief comes within old Vijayapura. He denied the suggestion that the said properties were situated at the distance of 8-10 km. from the acquired lands. He stated that the distance between acquired lands and said properties is about 1-km. He denied the suggestion that he has falsely stated in Para No.19 of the examination-in-chief. He deposed that the properties shown in Para No.19 were situated near Athani Road. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He denied the suggestion that he was deposing falsely stating that towards all the directions of the acquired lands were fully developed. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He admitted that he has falsely stated in Para 22 as four Medical Colleges in Vijayapura town. He denied the suggestion that he falsely stated that four Ayurvedic

and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in Para 23 of the examination-in-chief, he has deposed falsely about industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-34 to Ex.P-38 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-34

to Ex.P-38 were high. He admitted the suggestion that Ex.P-23 Notification relating to comprehensive development of period of 20 years of Vijayapura. He denied the suggestion that the properties shown in Ex.P-24 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-39 to Ex.P-70, were pertaining to Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-39 to Ex.P-70 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-71 does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that

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enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-79 is a created document. He denied the suggestion that Ex.P-33 does not applicable to acquired lands. He denied all the contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-39 to Ex.P-70 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 05-07-2014. the details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur- ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/ 11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/ 11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88

3.	41	8.6.12	2179/ 12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	42	2.7.12	3126/ 12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	43	4.7.12	3261/ 12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	44	5.7.12	3267/ 12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	45	2.8.12	4442/ 12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	46	3.8.12	4506/12 -13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	47	7.8.12	4649/12 -13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	48	22.8.12	5220/ 12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85
11.	49	22.8.12	5224/ 12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	50	27.12.12	10240/ 12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	51	8.1.13	10580/ 12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	52	22.2.13	12442/ 12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	57	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	59	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	60	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	62	12.11.13	8709/13 -14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81

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25.	63	28.12.13	10569/1 3-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
31.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	70	23.6.14	4857/14 -15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or

- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned, shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in

the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well

within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-34 to Ex.P-38 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-34 to Ex.P-38 would not indicate the normal value of the lands. Hence, Ex.P-34 to Ex.P-38 were not taken into consideration. In the above said table, Ex.P-41 to Ex.P-45, Ex.P-47 to Ex.P-52, Ex.P-59 and Ex.P-60 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-57, the price per square metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands.

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Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	46	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	54	26.6.13	3069/13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	55	25.7.13	4389/13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	61	29.10.13	8178/13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	63	28.12.13	10569/13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	64	2.1.14	10732/13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	65	5.2.14	12184/13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	66	25.2.14	13275/13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56

15.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
17.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	70	23.6.14	4857/14 -15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-39, Ex.P-53, Ex.P-56, Ex.P-58, Ex.P-62, Ex.P-66, Ex.P-67, Ex.P-69 and Ex.P-70 were taken into consideration.. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

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The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands.

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
3.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
4.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
6.	66	25.2.14	13275/13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	67	10.3.14	13890/13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	69	16.5.14	2129/14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	70	23.6.14	4857/14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37
							76217.48

The average Highest Sale Price of above said exhibited Dry lands:

Rs. $\frac{76217.48}{9}$ = 8468.60/- per Sq. Metre for land

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired

land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimants relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-71. In Ex.P-71, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land.

Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimants contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the

multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimants are entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimants is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimants in respect of land bearing R.S.No.461/3 are entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 1-acre 20-guntas of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for

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the subsequent period till the date of payment or deposit. The claimants are entitled to all statutory benefits available under the law.

The amount, if any, already paid to the claimants, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 26th day of March, 2019)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE**List of Witnesses examined on behalf of Claimants:**

P.W.1 : Sidduba S/o Ramachandra Chavan,
R/o Shivaji Peth, Near Upliburz, Vijayapura.
(In L.A.C. No.484/2018)

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimants:

Ex.P-1 to Ex.P-14 : Reference Applications filed before respondents.

Ex.P-15 to Ex.P-20 : C.C. of Order passed by Respondent No.1.

Ex.P-21 : C.C. of Notification issued by Under Secretary to Government, Health & Municipal Administration Department, Bengaluru.

Ex.P-22 : C.C. of Vijayapura City Map.

Ex.P-23 : C.C. of Notification issued by Under Secretary to Government, Department of Urban Development, Bengaluru.

Ex.P-24 : C.C. of Map.

Ex.P-24(a) : Acquired Area shown in Yellow Colour in Ex.P-24.

Ex.P-25 : Attested Copy of Gazette Notification No.UDD 153 MLR 2013, dated 20-12-2013.

Ex.P-26 : Letter of CMC, Vijayapura.

Ex.P-27 : Vijayapura Taluka Map.

Ex.P-28 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.

Ex.P-29 : Letter issued by Assistant Commissioner, Vijayapura.

Ex.P-30 : Letter issued by Assistant Commissioner, Vijayapura.

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- Ex.P-31 : Letter issued by Commissioner, VDA,
Vijayapura.
- Ex.P-32 : Letter of Assistant Controller, Rights and
Measure Department, Vijayapura.
- Ex.P-33 : C.C. of Order passed in Writ Petition
No.201027/2015. .
- Ex.P-34 to Ex.P-38 : Details of Auctioned Plots.
- Ex.P-39 to Ex.P-70 : C.C. of Sale Deeds.
- Ex.P-71 : C.C. of Judgment in Civil Appeal No.1645-
1648 of 2016.
- Ex.P-72 : C.C. of Order passed by the Court of the
Arbitrator National Highway Authority
of India, Deputy Commissioner, Vijayapura.
- Ex.P-73 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-74 & Ex.P-75 : C.C. of Compensation Payment
Register of Tidagundi Village.
- Ex.P-76 & Ex.P-77 : C.C. of Memorandums issued by
D.C., Vijayapura.
- Ex.P-78 : C.C. of Award No.NH 13/CALA/BJP/CR-
14/2011-12 Dated 11-10-2013.
- Ex.P-79 : C.C. of Sale Deed.
- Ex.P-80 : C.C. of Vouchers for payment of
Compensation.
- Ex.P-81 : C.C. of Indemnity Bond.
- Ex.P-82 : C.C. of Compensation Payment Register of
Tidagundi Village.
- Ex.P-83 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-84 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-85 : C.C. of Indemnity Bond.
- Ex.P-86 : C.C. of Memorandum issued by D.C.,
Vijayapura.

- Ex.P-87 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-88 : C.C. of Indemnity Bond.
- Ex.P-89 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-90 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-91 : C.C. of Excess & Additional Area Award No.NH 13/CALA/BJP/CR-14/2012-13 dated 31-5-2016.
- Ex.P-92 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-93 : C.C. of Indemnity Bond.
- Ex.P-94 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-95 : C.C. of Toll Plaza Area Original Award No.NH 13/CALA/BJP/CR-14/2015-16 dated 31-7-2016.
- Ex.P-96 : C.C. of Office Order passed by Assistant Commissioner, Vijayapura & Competent Authority for Land Acquisition, NH.13 (Solapur Section).
- Ex.P-97 : C.C. of Agreement Letter.
- Ex.P-98 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-99 : C.C. of Indemnity Bond.
- Ex.P-100 : C.C. of Possession Certificate.
- Ex.P-101 : Valuation Report.

(The above said exhibits were marked in L.A.C. No.484/2018)

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-14: Copies of Award No.LAQ:SR:28/2014-15 dated 15-01-2018.

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Ex.R-15 to Ex.R-28 : Copies of Form of Reference to
the Court U/Sec.65(1) of the
RFCTLARR, Act, 2013.

Ex.R-29 to Ex.R-42: Copies of Schedule U/Sec.65(2) of
the RFCTLARR, Act, 2013.

(The above said exhibits were marked in L.A.C.
No.484/2018)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE-B-3

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

Sri Raghavendra Gowda B.G.,
B.A.L., LL.B.,
I Additional District Judge,
Vijayapura

Dated this the 26th day of March, 2019

L.A.C.No.495/2018

BETWEEN:

Shrishail S/o Yamanappa Dodamani @ Doddamani,
Age: 39 years, Occ: Agriculture,
R/o Basava Nagar, Bagalkot Road,
Vijayapura.

Claimant/Applicant.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.
2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.
3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.28/2014-15, which was pronounced on 21-02-2018 and 11(1) Notification is dated 05-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of construction of Rehabilitation Centre of Shirabur Village through a Notification dated 05-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 21-02-2018. In the award, the market value

of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimant are as under:

Sy.No.	Acquired Area A-G	Village
461/4	1-20	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimant has filed his protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimant in the petition are that, the claimant is the owner of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and

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sufficient opportunity of hearing to claimant and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimant stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they

have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City

Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimant sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimant only in order to get more compensation have exaggerated the potentiality of the

land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.485 to 497 of 2018 with L.A.C. No.484 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.485 to 497 of 2018 with L.A.C.No.484 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.487/2018 and L.A.C.No.488/2018 by name Sidduba S/o Ramachandra Chavan has deposed on his behalf and behalf of claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-101. The respondents marked Copies of Award as per Ex.R-1 to

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Ex.R-14, Notices U/Sec.65(1) of the RFCTLARR Act were marked as per Ex.R-15 to Ex.R-28 and Notices U/Sec.65(2) of the RFCTLARR Act were marked as per Ex.R-29 to Ex.R-42.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimant filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-101 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-23-Government Notification, which discloses that the acquired lands come within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-25-Notification and Ex.P-28-Letter and contended that Mahalbagayat area comes within the Vijayapura City Municipal limits and the same was declared as smaller urban area. Ex.P-26 is the Letter issued by CMC, Vijayapura stating that Sy.No.454, 455/1, 455/2, 456/1, 2, 456/1+2, 458/1, 458/2, 458/3, 461/1, 461/2, 461/3, 461/4, 461/5 and 462/1

come within the Vijayapura City Municipal Council. Learned Counsel for the claimant further argued that basing on Ex.P-1 to Ex.P-101, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimant are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimant are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. . There is no immediate development aspects in respect of the acquired lands. The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

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11. In view of the above evidence and materials,
the Points that arise for determination are :

1. Whether the reference petition is within time?
2. Whether the claimant is entitled for enhancement of award amount as prayed for ?
3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order
for the following:

REASONS

13. **POINT No.1:-** It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 21-02-2018 and the reference application is filed on 26-03-2018. Hence, reference petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period

of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioner/claimant has proved that he has filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimant that the claimant is the owner of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimant and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimant stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the

South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers, are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(I) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(I) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions, and the City is now being called as 'City of Education'. On the establishment of

NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimant sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.487/2018 and L.A.C.No.488/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and 101 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-14 are the Reference Applications. Ex.P-15 to Ex.P-20 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.455/2, Sy.No.456/1, 2, Sy.No.457/1+2, Sy.No.458/2, Sy.No.461/1 and Sy.No.462/1 of Mahalbagayat. Ex.P-21 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-22 is the Certified Copy of Local Planning Area Map of Vijayapura. Ex.P-23 is the Copy of Government Notification dated 02-04-2001. Ex.P-24 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-24 and the same is marked as Ex.P-24(a). Ex.P-25 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-26 is the Letter of Commissioner of

CMC Vijayapura dated 26-06-2018. The claimant contended that in Ex.P-26 it has been certified that above acquired lands come under Vijayapura Corporation limits. Thus, from the above exhibits, it is clear that the acquired lands come within the limits of Vijayapura Corporation limits and they are N.A. potential lands and capable for formation of layouts. Ex.P-27 is the Vijayapura Taluka Map. Ex.P-28 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-28, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-29 and Ex.P-30 are the Letters issued by the Assistant Commissioner, Vijayapura. Ex.P-31 is the Letter issued by the Commissioner, VDA, Vijayapura. Ex.P-32 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant is claiming fixing the market value on the square metre basis and

hence the said document is produced. Ex.P-33 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-34 to Ex.P-38 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-39 to Ex.P-70 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-71 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-72 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-73 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-74 and Ex.P-75 are the Certified Copies of Compensation Payment Register, Tidagundi Village. Ex.P-76 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial

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purposes. Ex.P-77 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-78 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-79 is the Certified Copy of Sale Deed. Ex.P-80 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-81 is the Certified Copy of the Indemnity Bond. Ex.P-82 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-83 is the Certified Copy of Memorandum. Ex.P-84 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-85 is the Certified Copy of Indemnity Bond. Ex.P-86 is the Certified Copy of Memorandum. Ex.P-87 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-88 is the Certified Copy of Indemnity Bond. Ex.P-89 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-90 is the Certified Copy of Memorandum. Ex.P-91 is the Certified Copy of Additional Award in respect of

Tidagundi Village. Ex.P-92 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-93 is the Certified Copy of Indemnity Bond. Ex.P-94 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-95 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-96 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-97 is the Certified Copy of Consent Letter. Ex.P-98 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-99 is the Certified Copy of Indemnity Bond. Ex.P-100 is the Certified Copy of Possession Certificate. Ex.P-101 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents before the Court to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing

award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He admitted the suggestion that the lands pertaining to the City of Vijayapura were called as lands of Mahalbagayat and KASABA. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He denied the suggestion that Indian Petrol Pump at Jamakhandi Main Road is situated 6-7 Km. away from the acquired lands. He further stated that the acquired lands were within half kilometre from the said Petrol Pump. He denied the suggestion that Vijayapura-Babaleshwar main road situated 6-7 km. distance from the acquired lands. He stated that the

acquired lands situated within the distance of 30-feet. He denied the suggestion that except Solapur Road, Athani Road and Managuli Road, the Jamakhandi Road was not improved. He denied the suggestion that the facts stated by him in Para 16 of his examination-in-chief were wrong. He admitted the suggestion that KSRTC Depot, Jorapur Peth, Sainik School, Shastri Colony, Godawari Hotel and District Hospital were situated in Athani Main Road and the said Road is proceed towards western side of the Vijayapura and Jamakhandi road proceeds towards northern side. He denied the suggestion that the distance between two roads were about 8-10 km. He stated that the distance between two roads was 1-km. He denied the suggestion that he narrated false facts in Para 18 of his examination-in-chief. He admitted the suggestion that the property shown in Para No.18 of his examination-in-chief comes within old Vijayapura. He denied the suggestion that the said properties were situated at the distance of 8-10 km. from the acquired lands. He stated that the distance between acquired lands and said properties is about 1-km. He denied the

suggestion that he has falsely stated in Para No.19 of the examination-in-chief. He deposed that the properties shown in Para No.19 were situated near Athani Road. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He denied the suggestion that he was deposing falsely stating that towards all the directions of the acquired lands were fully developed. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He admitted that he has falsely stated in Para 22 as four Medical Colleges in Vijayapura town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in Para 23 of the examination-in-chief, he has deposed falsely about

industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-34 to Ex.P-38 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-34 to Ex.P-38 were high. He admitted the suggestion that Ex.P-23 Notification relating to comprehensive development of period of 20 years of Vijayapura. He denied the suggestion that the properties shown in Ex.P-24 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-39 to Ex.P-70, were pertaining to

Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-39 to Ex.P-70 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-71 does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-79 is a created document. He denied the suggestion that Ex.P-

33 does not applicable to acquired lands. He denied all the contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-39 to Ex.P-70 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 05-07-2014. the details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	41	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	42	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	43	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	44	5.7.12	3267/12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	45	2.8.12	4442/12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	46	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	47	7.8.12	4649/12-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	48	22.8.12	5220/12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85

11.	49	22.8.12	5224/ 12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	50	27.12.12	10240/ 12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	51	8.1.13	10580/ 12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	52	22.2.13	12442/ 12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	57	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	59	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	60	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	62	12.11.13	8709/1 3-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	63	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
31.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	70	23.6.14	4857/1 4-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land

by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the

agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-34 to Ex.P-38 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties

were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-34 to Ex.P-38 would not indicate the normal value of the lands. Hence; Ex.P-34 to Ex.P-38 were not taken into consideration. In the above said table, Ex.P-41 to Ex.P-45, Ex.P-47 to Ex.P-52, Ex.P-59 and Ex.P-60 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-57, the price per squire metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands. Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

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Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	46	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	53	27.5.13	1701/13-14	1020/1-B Plot-43 1020/4-D Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	54	26.6.13	3069/13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	55	25.7.13	4389/13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	61	29.10.13	8178/13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	63	28.12.13	10569/13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	64	2.1.14	10732/13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	65	5.2.14	12184/13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	66	25.2.14	13275/13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
15.	67	10.3.14	13890/13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	68	29.4.14	1158/14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
17.	69	16.5.14	2129/14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	70	23.6.14	4857/14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the

aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-39, Ex.P-53, Ex.P-56, Ex.P-58, Ex.P-62, Ex.P-66, Ex.P-67, Ex.P-69 and Ex.P-70 were taken into consideration. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands.

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measure ment	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33

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3.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
4.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	62	12.11.13	8709/ 13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
6.	66	25.2.14	13275/ 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	70	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37
							76217.48

The average Highest Sale Price of above said exhibited Dry lands:

$$\text{Rs. } \frac{76217.48}{9} = 8468.60/- \text{ per Sq.Metre for land}$$

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be

made vary from 10% to 86%. The learned Counsel for the claimant relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-71. In Ex.P-71, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land

is not converted land and it is an agricultural land and the Counsel for the claimant contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimant is entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimant is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimant in respect of land bearing R.S.No.461/4 is entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 1-acre 20-guntas of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimant is also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimant is also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for the subsequent period till the date of payment or deposit. The claimant is entitled to all statutory benefits available under the law.

The amount, if any, already paid to the claimant, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 26th day of March, 2019)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE

List of Witnesses examined on behalf of Claimant:

P.W.1 : Sidduba S/o Ramachandra Chavan,
R/o Shivaji Peth, Near Upliburz, Vijayapura.
(In L.A.C. No.484/2018)

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimant:

Ex.P-1 to Ex.P-14 : Reference Applications filed before respondents.

Ex.P-15 to Ex.P-20 : C.C. of Order passed by Respondent No.1.

Ex.P-21 : C.C. of Notification issued by Under Secretary to Government, Health & Municipal Administration Department, Bengaluru.

Ex.P-22 : C.C. of Vijayapura City Map.

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- Ex.P-23 : C.C. of Notification issued by Under Secretary to Government, Department of Urban Development, Bengaluru.
- Ex.P-24 : C.C. of Map.
- Ex.P-24(a) : Acquired Area shown in Yellow Colour in Ex.P-24.
- Ex.P-25 : Attested Copy of Gazette Notification No.UDD 153 MLR 2013, dated 20-12-2013.
- Ex.P-26 : Letter of CMC, Vijayapura.
- Ex.P-27 : Vijayapura Taluka Map.
- Ex.P-28 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.
- Ex.P-29 : Letter issued by Assistant Commissioner, Vijayapura.
- Ex.P-30 : Letter issued by Assistant Commissioner, Vijayapura.
- Ex.P-31 : Letter issued by Commissioner, VDA, Vijayapura.
- Ex.P-32 : Letter of Assistant Controller, Rights and Measure Department, Vijayapura.
- Ex.P-33 : C.C. of Order passed in Writ Petition No.201027/2015.
- Ex.P-34 to Ex.P-38 : Details of Auctioned Plots.
- Ex.P-39 to Ex.P-70 : C.C. of Sale Deeds.
- Ex.P-71 : C.C. of Judgment in Civil Appeal No.1645-1648 of 2016.
- Ex.P-72 : C.C. of Order passed by the Court of the Arbitrator National Highway Authority of India, Deputy Commissioner, Vijayapura.
- Ex.P-73 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-74 & Ex.P-75 : C.C. of Compensation Payment Register of Tidagundi Village.

Ex.P-76 & Ex.P-77 : C.C. of Memorandums issued by
D.C., Vijayapura.

Ex.P-78 : C.C. of Award No.NH 13/CALA/BJP/CR-
14/2011-12 Dated 11-10-2013.

Ex.P-79 : C.C. of Sale Deed.

Ex.P-80 : C.C. of Vouchers for payment of
Compensation.

Ex.P-81 : C.C. of Indemnity Bond.

Ex.P-82 : C.C. of Compensation Payment Register of
Tidagundi Village.

Ex.P-83 : C.C. of Memorandum issued by D.C.
Vijayapura.

Ex.P-84 : C.C. of Vouchers for Payment of
Compensation.

Ex.P-85 : C.C. of Indemnity Bond.

Ex.P-86 : C.C. of Memorandum issued by D.C.,
Vijayapura.

Ex.P-87 : C.C. of Vouchers for Payment of
Compensation.

Ex.P-88 : C.C. of Indemnity Bond.

Ex.P-89 : C.C. of Compensation Payment Register of
Tidagundi Village.

Ex.P-90 : C.C. of Memorandum issued by D.C.,
Vijayapura.

Ex.P-91 : C.C. of Excess & Additional Area Award
No.NH 13/CALA/BJP/CR-14/2012-13
dated 31-5-2016.

Ex.P-92 : C.C. of Vouchers for Payment of
Compensation.

Ex.P-93 : C.C. of Indemnity Bond.

Ex.P-94 : C.C. of Compensation Payment Register of
Tidagundi Village.

Ex.P-95 : C.C. of Toll Plaza Area Original Award
No.NH 13/CALA/BJP/CR-14/2015-16
dated 31-7-2016.

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- Ex.P-96 : C.C. of Office Order passed by
Assistant Commissioner, Vijayapura &
Competent Authority for Land Acquisition,
NH.13 (Solapur Section).
- Ex.P-97 : C.C. of Agreement Letter.
- Ex.P-98 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-99 : C.C. of Indemnity Bond.
- Ex.P-100 : C.C. of Possession Certificate.
- Ex.P-101 : Valuation Report.

**(The above said exhibits were marked in L.A.C.
No.484/2018)**

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-14: Copies of Award No.LAQ:SR:28/
2014-15 dated 15-01-2018.
- Ex.R-15 to Ex.R-28 : Copies of Form of Reference to
the Court U/Sec.65(1) of the
RFCTLARR, Act, 2013.
- Ex.R-29 to Ex.R-42: Copies of Schedule U/Sec.65(2) of
the RFCTLARR, Act, 2013.

**(The above said exhibits were marked in L.A.C.
No.484/2018)**

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE-B-4

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

**Sri Raghavendra Gowda B.G.,
B.A.L., LL.B.,
I Additional District Judge,
Vijayapura**

Dated this the 26th day of March, 2019

L.A.C.No.497/2018

BETWEEN:

1. Gangadhar S/o Vidyadhar Heralagi,
Age: 40 years, Occ: Agriculture.
2. Poornima @ Girijavva W/o Rajashekhar Heralagi,
Age: 39 years, Occ: Agriculture/Household Work.
3. Prerana D/o Rajashekhar Heralagi,
Age: 15 years, Occ: Student.
4. Naveen S/o Rajashekhar Heralagi,
Age: 14 years, Occ: Student.

Applicants No.3 & 4 are Minors,
M/G i.e. their natural mother-applicant No.2
Poornima @ Girijavva W/o Rajashekhar Heralagi,

All are R/o Jorapur Peth, Banagar Galli,
Vijayapura.

Claimants/Applicants.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.

2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.

3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.28/2014-15, which was pronounced on 21-02-2018 and 11(1) Notification is dated 05-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of

construction of Rehabilitation Centre of Shirabur Village through a Notification dated 05-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 21-02-2018. In the award, the market value of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimants are as under:

Sy.No.	Acquired Area A-G	Village
462/1	8-00	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimants have filed their protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimants in the petition are that, the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of

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Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial

potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in

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accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimants only in order to get more compensation have exaggerated the potentiality of the land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.485 to 497 of 2018 with L.A.C. No.484 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.485 to 497 of 2018 with L.A.C.No.484 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.487/2018 and L.A.C.No.488/2018 by name Sidduba S/o Ramachandra Chavan has deposed on his behalf and behalf of

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claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-101. The respondents marked Copies of Award as per Ex.R-1 to Ex.R-14, Notices U/Sec.65(1) of the RFCTLARR Act were marked as per Ex.R-15 to Ex.R-28 and Notices U/Sec.65(2) of the RFCTLARR Act were marked as per Ex.R-29 to Ex.R-42.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimants filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-101 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-23-Government Notification, which discloses that the acquired lands come within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-25-Notification and Ex.P-28-Letter and contended that Mahalbagayat area comes within the

Vijayapura City Municipal limits and the same was declared as smaller urban area. Ex.P-26 is the Letter issued by CMC, Vijayapura, stating that Sy.No.454, 455/1, 455/2, 456/1, 2, 456/1+2, 458/1, 458/2, 458/3, 461/1, 461/2, 461/3, 461/4, 461/5 and 462/1 come within the Vijayapura City Municipal Council. Learned Counsel for the claimants further argued that basing on Ex.P-1 to Ex.P-101, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimants are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimants are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands.

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The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?

2. Whether the claimants are entitled for enhancement of award amount as prayed for ?

3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order
for the following:

REASONS

13. **POINT No.1:-** It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 21-02-2018 and the reference application is filed on 26-03-2018. Hence, reference

petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioners/claimants have proved that they have filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimants that the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired

as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year.

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Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds

and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.487/2018 and L.A.C.No.488/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and 101 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-14 are the Reference Applications. Ex.P-15 to Ex.P-20 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.455/2, Sy.No.456/1, 2, Sy.No.457/1+2, Sy.No.458/2, Sy.No.461/1 and Sy.No.462/1 of Mahalbagayat. Ex.P-21 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-22 is the Certified Copy of Local Planning Area Map of Vijayapura. Ex.P-23 is the Copy of Government Notification dated 02-04-2001. Ex.P-24 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-24 and the same is marked as

Ex.P-24(a). Ex.P-25 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-26 is the Letter of Commissioner of CMC Vijayapura dated 26-06-2018. The claimant contended that in Ex.P-26 it has been certified that above acquired lands come under Vijayapura Corporation limits. Thus, from the above exhibits, it is clear that the acquired lands come within the limits of Vijayapura Corporation limits and they are N.A. potential lands and capable for formation of layouts. Ex.P-27 is the Vijayapura Taluka Map. Ex.P-28 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-28, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-29 and Ex.P-30 are the Letters issued by the Assistant Commissioner, Vijayapura. Ex.P-31 is the Letter issued by the Commissioner, VDA,

Vijayapura. Ex.P-32 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant is claiming fixing the market value on the squire metre basis and hence the said document is produced. Ex.P-33 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-34 to Ex.P-38 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-39 to Ex.P-70 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-71 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-72 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-73 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-74 and Ex.P-75 are the Certified Copies of Compensation Payment

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Register, Tidagundi Village. Ex.P-76 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial purposes. Ex.P-77 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-78 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-79 is the Certified Copy of Sale Deed. Ex.P-80 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-81 is the Certified Copy of the Indemnity Bond. Ex.P-82 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-83 is the Certified Copy of Memorandum. Ex.P-84 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-85 is the Certified Copy of Indemnity Bond. Ex.P-86 is the Certified Copy of Memorandum. Ex.P-87 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-88 is the Certified Copy of

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Indemnity Bond. Ex.P-89 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-90 is the Certified Copy of Memorandum. Ex.P-91 is the Certified Copy of Additional Award in respect of Tidagundi Village. Ex.P-92 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-93 is the Certified Copy of Indemnity Bond. Ex.P-94 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-95 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-96 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-97 is the Certified Copy of Consent Letter. Ex.P-98 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-99 is the Certified Copy of Indemnity Bond. Ex.P-100 is the Certified Copy of Possession Certificate. Ex.P-101 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents before the Court

to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He admitted the suggestion that the lands pertaining to the City of Vijayapura were called as lands of Mahalbagayat and KASABA. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He denied the suggestion that Indian Petrol Pump at Jamakhandi Main Road is situated 6-7 Km. away from the acquired lands. He further stated that

the acquired lands were within half kilometre from the said Petrol Pump. He denied the suggestion that Vijayapura-Babaleshwar main road situated 6-7 km. distance from the acquired lands. He stated that the acquired lands situated within the distance of 30-feet. He denied the suggestion that except Solapur Road, Athani Road and Managuli Road, the Jamakhandi Road was not improved. He denied the suggestion that the facts stated by him in Para 16 of his examination-in-chief were wrong. He admitted the suggestion that KSRTC Depot, Jorapur Peth, Sainik School, Shastri Colony, Godawari Hotel and District Hospital were situated in Athani Main Road and the said Road is proceed towards western side of the Vijayapura and Jamakhandi road proceeds towards northern side. He denied the suggestion that the distance between two roads were about 8-10 km. He stated that the distance between two roads was 1-km. He denied the suggestion that he narrated false facts in Para 18 of his examination-in-chief. He admitted the suggestion that the property shown in Para No.18 of his examination-in-chief comes within old Vijayapura. He denied the

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suggestion that the said properties were situated at the distance of 8-10 km. from the acquired lands. He stated that the distance between acquired lands and said properties is about 1-km. He denied the suggestion that he has falsely stated in Para No.19 of the examination-in-chief. He deposed that the properties shown in Para No.19 were situated near Athani Road. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He denied the suggestion that he was deposing falsely stating that towards all the directions of the acquired lands were fully developed. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He admitted that he has falsely stated in Para 22 as four Medical Colleges in Vijayapura town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not

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fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in Para 23 of the examination-in-chief, he has deposed falsely about industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-34 to Ex.P-38 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-34 to Ex.P-38 were high. He admitted the suggestion that Ex.P-23 Notification relating to comprehensive development of period of 20 years of Vijayapura. He

denied the suggestion that the properties shown in Ex.P-24 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-39 to Ex.P-70, were pertaining to Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-39 to Ex.P-70 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-71 does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a

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small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-79 is a created document. He denied the suggestion that Ex.P-33 does not applicable to acquired lands. He denied all the contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-39 to Ex.P-70 32-Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 05-07-2014. the details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	41	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	42	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	43	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33

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6.	44	5.7.12	3267/ 12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	45	2.8.12	4442/ 12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	46	3.8.12	4506/1 2-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	47	7.8.12	4649/1 2-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	48	22.8.12	5220/ 12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85
11.	49	22.8.12	5224/ 12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	50	27.12.12	10240/ 12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	51	8.1.13	10580/ 12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	52	22.2.13	12442/ 12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	57	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	59	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	60	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	62	12.11.13	8709/1 3-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	63	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07

28.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
31.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	70	23.6.14	4857/1 4-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land

by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation, as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for

private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well

within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-34 to Ex.P-38 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-34 to Ex.P-38 would not indicate the normal value of the lands. Hence, Ex.P-34 to Ex.P-38 were not taken into consideration. In the above said table, Ex.P-41 to Ex.P-45, Ex.P-47 to Ex.P-52, Ex.P-59 and Ex.P-60 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-57, the price per squire metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands.

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Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/ 11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/ 11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	46	3.8.12	4506/12 -13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	62	12.11.13	8709/13 -14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	63	28.12.13	10569/1 3-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56

15.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
17.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	70	23.6.14	4857/14 -15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-39, Ex.P-53, Ex.P-56, Ex.P-58, Ex.P-62, Ex.P-66, Ex.P-67, Ex.P-69 and Ex.P-70 were taken into consideration. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

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The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands.

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measure ment	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
3.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
4.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
6.	66	25.2.14	13275 / 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	67	10.3.14	13890 / 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	69	16.5.14	2129/14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	70	23.6.14	4857/14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37
							76217.48

The average Highest Sale Price of above said exhibited Dry lands:

Rs. $\frac{76217.48}{9}$ = 8468.60/- per Sq. Metre for land

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As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while

determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimants relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-71. In Ex.P-71, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into

consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimants contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the

multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimants are entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimants is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. POINT No.3:- In view of findings on Points No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimants in respect of land bearing R.S.No.462/1 are entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 8-acres of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for

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the subsequent period till the date of payment or deposit. The claimants are entitled to all statutory benefits available under the law.

The amount, if any, already paid to the claimants, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 26th day of March, 2019)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE

List of Witnesses examined on behalf of Claimants:

P.W.1 : Sidduba S/o Ramachandra Chavan,
R/o Shivaji Peth, Near Upliburz, Vijayapura.
(In L.A.C. No.484/2018)

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimants:

Ex.P-1 to Ex.P-14 : Reference Applications filed before respondents.

Ex.P-15 to Ex.P-20 : C.C. of Order passed by Respondent No.1.

Ex.P-21 : C.C. of Notification issued by Under Secretary to Government, Health & Municipal Administration Department, Bengaluru.

Ex.P-22 : C.C. of Vijayapura City Map.

Ex.P-23 : C.C. of Notification issued by Under Secretary to Government, Department of Urban Development, Bengaluru.

Ex.P-24 : C.C. of Map.

Ex.P-24(a) : Acquired Area shown in Yellow Colour in Ex.P-24.

Ex.P-25 : Attested Copy of Gazette Notification No.UDD 153 MLR 2013, dated 20-12-2013.

Ex.P-26 : Letter of CMC, Vijayapura.

Ex.P-27 : Vijayapura Taluka Map.

Ex.P-28 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.

Ex.P-29 : Letter issued by Assistant Commissioner, Vijayapura.

Ex.P-30 : Letter issued by Assistant Commissioner, Vijayapura.

- Ex.P-31 : Letter issued by Commissioner, VDA,
Vijayapura.
- Ex.P-32 : Letter of Assistant Controller, Rights and
Measure Department, Vijayapura.
- Ex.P-33 : C.C. of Order passed in Writ Petition
No.201027/2015.
- Ex.P-34 to Ex.P-38 : Details of Auctioned Plots.
- Ex.P-39 to Ex.P-70 : C.C. of Sale Deeds.
- Ex.P-71 : C.C. of Judgment in Civil Appeal No.1645-
1648 of 2016.
- Ex.P-72 : C.C. of Order passed by the Court of the
Arbitrator National Highway Authority,
of India, Deputy Commissioner, Vijayapura.
- Ex.P-73 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-74 & Ex.P-75 : C.C. of Compensation Payment
Register of Tidagundi Village.
- Ex.P-76 & Ex.P-77 : C.C. of Memorandums issued by
D.C., Vijayapura.
- Ex.P-78 : C.C. of Award No.NH 13/CALA/BJP/CR-
14/2011-12 Dated 11-10-2013.
- Ex.P-79 : C.C. of Sale Deed.
- Ex.P-80 : C.C. of Vouchers for payment of
Compensation.
- Ex.P-81 : C.C. of Indemnity Bond.
- Ex.P-82 : C.C. of Compensation Payment Register of
Tidagundi Village.
- Ex.P-83 : C.C. of Memorandum issued by D.C.
Vijayapura.
- Ex.P-84 : C.C. of Vouchers for Payment of
Compensation.
- Ex.P-85 : C.C. of Indemnity Bond.
- Ex.P-86 : C.C. of Memorandum issued by D.C.,
Vijayapura.

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- Ex.P-87 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-88 : C.C. of Indemnity Bond.
- Ex.P-89 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-90 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-91 : C.C. of Excess & Additional Area Award No.NH 13/CALA/BJP/CR-14/2012-13 dated 31-5-2016.
- Ex.P-92 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-93 : C.C. of Indemnity Bond.
- Ex.P-94 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-95 : C.C. of Toll Plaza Area Original Award No.NH 13/CALA/BJP/CR-14/2015-16 dated 31-7-2016.
- Ex.P-96 : C.C. of Office Order passed by Assistant Commissioner, Vijayapura & Competent Authority for Land Acquisition, NH.13 (Solapur Section).
- Ex.P-97 : C.C. of Agreement Letter.
- Ex.P-98 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-99 : C.C. of Indemnity Bond.
- Ex.P-100 : C.C. of Possession Certificate.
- Ex.P-101 : Valuation Report.

(The above said exhibits were marked in L.A.C. No.484/2018)

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-14: Copies of Award No.LAQ:SR:28/2014-15 dated 15-01-2018.

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Ex.R-15 to Ex.R-28 : Copies of Form of Reference to
the Court U/Sec.65(1) of the
RFCTLARR, Act, 2013.

Ex.R-29 to Ex.R-42: Copies of Schedule U/Sec.65(2) of
the RFCTLARR, Act, 2013.

(The above said exhibits were marked in L.A.C.
No.484/2018)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE-B-5

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

Sri Raghavendra Gowda B.G.,
B.A.L., LL.B.,
I Additional District Judge,
Vijayapura

Dated this the 26th day of March, 2019

L.A.C.No.496/2018

BETWEEN:

Babu S/o, Shivamma Yamme @ Shiranagar,
& S/o Shekhappa Shiranagar,
Age: 48 years, Occ: Agriculture,
R/o Ward No.29, Basvan Nagar, Bagalkot Road,
Vijayapura.

Claimant/Applicant.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.
2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.
3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.28/2014-15, which was pronounced on 21-02-2018 and 11(1) Notification is dated 05-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of construction of Rehabilitation Centre of Shirabur Village through a Notification dated 05-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 21-02-2018. In the award, the market value

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of lands determined as Rs.7,36,840/- per acre for the acquired lands:

3. The details of the acquired land of the claimant are as under:

Sy.No.	Acquired Area A-G	Village
461/5	2-00	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimant has filed his protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimant in the petition are that, the claimant is the owner of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and

sufficient opportunity of hearing to claimant and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimant stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they

have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City

Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimant sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimant only in order to get more compensation have exaggerated the potentiality of the

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land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.485 to 497 of 2018 with L.A.C. No.484 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.485 to 497 of 2018 with L.A.C.No.484 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.487/2018 and L.A.C.No.488/2018 by name Sidduba S/o Ramachandra Chavan has deposed on his behalf and behalf of claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-101. The respondents marked Copies of Award as per Ex.R-1 to

Ex.R-14, Notices U/Sec.65(1) of the RFCTLARR Act were marked as per Ex.R-15 to Ex.R-28 and Notices U/Sec.65(2) of the RFCTLARR Act were marked as per Ex.R-29 to Ex.R-42.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimant filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-101 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-23-Government Notification, which discloses that the acquired lands come within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-25-Notification and Ex.P-28-Letter and contended that Mahalbagayat area comes within the Vijayapura City Municipal limits and the same was declared as smaller urban area. Ex.P-26 is the Letter issued by CMC, Vijayapura stating that Sy.No.454, 455/1, 455/2, 456/1, 2, 456/1+2, 458/1, 458/2, 458/3, 461/1, 461/2, 461/3, 461/4, 461/5 and 462/1

come within the Vijayapura City Municipal Council.

Learned Counsel for the claimant further argued that basing on Ex.P-1 to Ex.P-101, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimant are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimant are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands. The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?
2. Whether the claimant is entitled for enhancement of award amount as prayed for ?
3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order

for the following:

REASONS

13. **POINT No.1:-** It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 21-02-2018 and the reference application is filed on 26-03-2018. Hence, reference petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period

of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioner/claimant has proved that he has filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2**:-- It is the case of the claimant that the claimant is the owner of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimant and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimant stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, District Hospital, Educational Institutions, towards the

South many Residential Colonies, towards East many Residential Layouts, Educational Institutions and also number of Hotels and Picnic Spots like Begum Tank and towards the West State Highway of Vijayapura to Hubballi, many Residential Layouts, three Petrol Pumps, Educational Institutions and Spiritual Centers are situated. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The SLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of

NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218, Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13 and 2013-14. The same has not been considering for determining the market value of the acquired land by the SLAO. On these main grounds and other grounds, the claimant sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

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15. The claimant in L.A.C. No.487/2018 and L.A.C.No.488/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.484 to 486 and 489 to 497 of 2018 and 101 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-14 are the Reference Applications. Ex.P-15 to Ex.P-20 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.455/2, Sy.No.456/1, 2, Sy.No.457/1+2, Sy.No.458/2, Sy.No.461/1 and Sy.No.462/1 of Mahalbagayat. Ex.P-21 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-22 is the Certified Copy of Local Planning Area Map of Vijayapura. Ex.P-23 is the Copy of Government Notification dated 02-04-2001. Ex.P-24 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-24 and the same is marked as Ex.P-24(a). Ex.P-25 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-26 is the Letter of Commissioner of

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CMC Vijayapura dated 26-06-2018. The claimant contended that in Ex.P-26 it has been certified that above acquired lands come under Vijayapura Corporation limits. Thus, from the above exhibits, it is clear that the acquired lands come within the limits of Vijayapura Corporation limits and they are N.A. potential lands and capable for formation of layouts. Ex.P-27 is the Vijayapura Taluka Map. Ex.P-28 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-28, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-29 and Ex.P-30 are the Letters issued by the Assistant Commissioner, Vijayapura. Ex.P-31 is the Letter issued by the Commissioner, VDA, Vijayapura. Ex.P-32 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant is claiming fixing the market value on the square metre basis and

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hence the said document is produced. Ex.P-33 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-34 to Ex.P-38 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-39 to Ex.P-70 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-71 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-72 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-73 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-74 and Ex.P-75 are the Certified Copies of Compensation Payment Register, Tidagundi Village. Ex.P-76 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial.

purposes. Ex.P-77 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-78 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-79 is the Certified Copy of Sale Deed. Ex.P-80 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-81 is the Certified Copy of the Indemnity Bond. Ex.P-82 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-83 is the Certified Copy of Memorandum. Ex.P-84 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-85 is the Certified Copy of Indemnity Bond. Ex.P-86 is the Certified Copy of Memorandum. Ex.P-87 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-88 is the Certified Copy of Indemnity Bond. Ex.P-89 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-90 is the Certified Copy of Memorandum. Ex.P-91 is the Certified Copy of Additional Award in respect of

Tidagundi Village. Ex.P-92 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-93 is the Certified Copy of Indemnity Bond. Ex.P-94 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-95 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-96 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-97 is the Certified Copy of Consent Letter. Ex.P-98 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-99 is the Certified Copy of Indemnity Bond. Ex.P-100 is the Certified Copy of Possession Certificate. Ex.P-101 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents before the Court to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing

award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He admitted the suggestion that the lands pertaining to the City of Vijayapura were called as lands of Mahalbagayat and KASABA. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He denied the suggestion that Indian Petrol Pump at Jamakhandi Main Road is situated 6-7 Km. away from the acquired lands. He further stated that the acquired lands were within half kilometre from the said Petrol Pump. He denied the suggestion that Vijayapura-Babaleshwar main road situated 6-7 km. distance from the acquired lands. He stated that the

acquired lands situated within the distance of 30-feet. He denied the suggestion that except Solapur Road, Athani Road and Managuli Road, the Jamakhandi Road was not improved. He denied the suggestion that the facts stated by him in Para 16 of his examination-in-chief were wrong. He admitted the suggestion that KSRTC Depot, Jorapur Peth, Sainik School, Shastri Colony, Godawari Hotel and District Hospital were situated in Athani Main Road and the said Road is proceed towards western side of the Vijayapura and Jamakhandi road proceeds towards northern side. He denied the suggestion that the distance between two roads were about 8-10 km. He stated that the distance between two roads was 1-km. He denied the suggestion that he narrated false facts in Para 18 of his examination-in-chief. He admitted the suggestion that the property shown in Para No.18 of his examination-in-chief comes within old Vijayapura. He denied the suggestion that the said properties were situated at the distance of 8-10 km. from the acquired lands. He stated that the distance between acquired lands and said properties is about 1-km. He denied the

suggestion that he has falsely stated in Para No.19 of the examination-in-chief. He deposed that the properties shown in Para No.19 were situated near Athani Road. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He denied the suggestion that he was deposing falsely stating that towards all the directions of the acquired lands were fully developed. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He admitted that he has falsely stated in Para 22 as four Medical Colleges in Vijayapura town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in Para 23 of the examination-in-chief, he has deposed falsely about

industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-34 to Ex.P-38 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-34 to Ex.P-38 were high. He admitted the suggestion that Ex.P-23. Notification relating to comprehensive development of period of 20 years of Vijayapura. He denied the suggestion that the properties shown in Ex.P-24 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-39 to Ex.P-70, were pertaining to

Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-39 to Ex.P-70 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-71 does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-79 is a created document. He denied the suggestion that Ex.P-

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33 does not applicable to acquired lands. He denied all the contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-39 to Ex.P-70 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 05-07-2014. the details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	41	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	42	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	43	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	44	5.7.12	3267/12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	45	2.8.12	4442/12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	46	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	47	7.8.12	4649/12-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	48	22.8.12	5220/12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85

11.	49	22.8.12	5224/ 12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	50	27.12.12	10240/ 12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	51	8.1.13	10580/ 12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	52	22.2.13	12442/ 12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	54	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	55	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	57	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	59	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	60	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	61	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	62	12.11.13	8709/13 -14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	63	28.12.13	10569/1 3-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	64	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	65	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	66	25.2.14	13275/ 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	67	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	68	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
31.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	70	23.6.14	4857/14 -15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land

by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the

agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-34 to Ex.P-38 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties

were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-34 to Ex.P-38 would not indicate the normal value of the lands. Hence, Ex.P-34 to Ex.P-38 were not taken into consideration. In the above said table, Ex.P-41 to Ex.P-45, Ex.P-47 to Ex.P-52, Ex.P-59 and Ex.P-60 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-57, the price per squire metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands. Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

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Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measure ment	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	40	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	46	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	53	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	54	26.6.13	3069/13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	55	25.7.13	4389/13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	56	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	58	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	61	29.10.13	8178/13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	62	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	63	28.12.13	10569/13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	64	2.1.14	10732 / 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	65	5.2.14	12184 / 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	66	25.2.14	13275 / 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
15.	67	10.3.14	13890 / 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	68	29.4.14	1158/14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.67
17.	69	16.5.14	2129/14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	70	23.6.14	4857/14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

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Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-39, Ex.P-53, Ex.P-56, Ex.P-58, Ex.P-62, Ex.P-66, Ex.P-67, Ex.P-69 and Ex.P-70 were taken into consideration. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands.

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measure ment	Sale Value	Per Sq.Mtr.
1.	39	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24

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2.	53	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
3.	56	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
4.	58	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	62	12.11.13	8709/ 13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
6.	66	25.2.14	13275 / 13-14	1019/1B/1- K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	67	10.3.14	13890 / 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	69	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	70	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37
							76217.48

The average Highest Sale Price of above said exhibited Dry lands:

Rs. $\frac{76217.48}{9}$ = 8468.60/- per Sq. Metre for land

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The

Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimant relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-71. In Ex.P-71, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired

land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimant contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimant is entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore,

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the petition of the present claimant is allowed in part.
Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points
No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section
64 of the Right to Fair Compensation and
Transparency in Land Acquisition,
Rehabilitation and Resettlement Act, 2013 is
allowed in part with costs.

The claimant in respect of land bearing
R.S.No.461/5 is entitled for enhancement
compensation of Rs.2,541/- per Sq.Metre to
the extent of acquired land of 2-acres of
Mahalbagayat, Vijayapura.

The respondents' authorities are also
directed to pay the solatium at the rate of
100% of the market value of acquired land
U/Sec.30(1) of the Right to Fair
Compensation and Transparency in Land

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Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimant is also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimant is also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for the subsequent period till the date of payment or deposit. The claimant is entitled to all statutory benefits available under the law.

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L.A.C.496/2018.

The amount, if any, already paid to the claimant, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 26th day of March, 2019).

(Raghavendra Gowda B.G.)

I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

<><><>

ANNEXURE

List of Witnesses examined on behalf of Claimant:

P.W.1 : Sidduba S/o Ramachandra Chavan,
R/o Shivaji Peth, Near Upliburz, Vijayapura.
(In L.A.C. No.484/2018)

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimant:

Ex.P-1 to Ex.P-14 : Reference Applications filed before respondents.

Ex.P-15 to Ex.P-20 : C.C. of Order passed by Respondent No.1.

- Ex.P-21 : C.C. of Notification issued by Under Secretary to Government, Health & Municipal Administration Department, Bengaluru.
- Ex.P-22 : C.C. of Vijayapura City Map.
- Ex.P-23 : C.C. of Notification issued by Under Secretary to Government, Department of Urban Development, Bengaluru.
- Ex.P-24 : C.C. of Map.
- Ex.P-24(a) : Acquired Area shown in Yellow Colour in Ex.P-24.
- Ex.P-25 : Attested Copy of Gazette Notification No.UDD 153 MLR 2013, dated 20-12-2013.
- Ex.P-26 : Letter of CMC, Vijayapura.
- Ex.P-27 : Vijayapura Taluka Map.
- Ex.P-28 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.
- Ex.P-29 : Letter issued by Assistant Commissioner, Vijayapura.
- Ex.P-30 : Letter issued by Assistant Commissioner, Vijayapura.
- Ex.P-31 : Letter issued by Commissioner, VDA, Vijayapura.
- Ex.P-32 : Letter of Assistant Controller, Rights and Measure Department, Vijayapura.
- Ex.P-33 : C.C. of Order passed in Writ Petition No.201027/2015.
- Ex.P-34 to Ex.P-38 : Details of Auctioned Plots.
- Ex.P-39 to Ex.P-70 : C.C. of Sale Deeds.
- Ex.P-71 : C.C. of Judgment in Civil Appeal No.1645-1648 of 2016.
- Ex.P-72 : C.C. of Order passed by the Court of the Arbitrator National Highway Authority of India, Deputy Commissioner, Vijayapura.

- Ex.P-73 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-74 & Ex.P-75 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-76 & Ex.P-77 : C.C. of Memorandums issued by D.C., Vijayapura.
- Ex.P-78 : C.C. of Award No.NH 13/CALA/BJP/CR-14/2011-12 Dated 11-10-2013.
- Ex.P-79 : C.C. of Sale Deed.
- Ex.P-80 : C.C. of Vouchers for payment of Compensation.
- Ex.P-81 : C.C. of Indemnity Bond.
- Ex.P-82 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-83 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-84 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-85 : C.C. of Indemnity Bond.
- Ex.P-86 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-87 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-88 : C.C. of Indemnity Bond.
- Ex.P-89 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-90 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-91 : C.C. of Excess & Additional Area Award No.NH 13/CALA/BJP/CR-14/2012-13 dated 31-5-2016.
- Ex.P-92 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-93 : C.C. of Indemnity Bond.

- Ex.P-94 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-95 : C.C. of Toll Plaza Area Original Award No.NH 13/CALA/BJP/CR-14/2015-16 dated 31-7-2016.
- Ex.P-96 : C.C. of Office Order passed by Assistant Commissioner, Vijayapura & Competent Authority for Land Acquisition, NH.13 (Solapur Section).
- Ex.P-97 : C.C. of Agreement Letter.
- Ex.P-98 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-99 : C.C. of Indemnity Bond.
- Ex.P-100 : C.C. of Possession Certificate.
- Ex.P-101 : Valuation Report.

(The above said exhibits were marked in L.A.C. No.484/2018)

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-14: Copies of Award No.LAQ:SR:28/2014-15 dated 15-01-2018.
- Ex.R-15 to Ex.R-28 : Copies of Form of Reference to the Court U/Sec.65(1) of the RFCTLARR, Act, 2013.
- Ex.R-29 to Ex.R-42: Copies of Schedule U/Sec.65(2) of the RFCTLARR, Act, 2013.

(The above said exhibits were marked in L.A.C. No.484/2018)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE-B-6

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

Sri Raghavendra Gowda B.G.,
B.A.L., LL.B.,
I Additional District Judge,
Vijayapura

Dated this the 10th day of April, 2019

L.A.C.No.525/2018

BETWEEN:

Siddappa S/o Gurusiddappa Pujari,
Age: 75 years, Occ: Agriculture,
R/o Kasageri Galli, Vijayapura.

Claimant/Applicant.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.
2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.
3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

ANNEXURE

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(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.29/2014-15, which was pronounced on 20-02-2018 and 11(1) Notification is dated 15-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of construction of Rehabilitation Centre of Chikkagalagali Village through a Notification dated 15-07-2014 under Section 11(1) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 20-02-2018. In the award, the market value

of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimant are as under:

Sy.No.	Acquired Area A-G	Village
996/1	3-10	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimant has filed his protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimant in the petition are that, the claimant is the owner of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and

sufficient opportunity of hearing to claimant and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimant stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, Banks, Educational Institutions, District Court Complex, Government Offices, towards the South many Residential Colonies and Layouts, Agriculture College and University and Hotels, towards East N.H.218 Vijayapura-Hubballi Road, many Residential Layouts, Educational Institutions and Ibrahimpur Railway Station and towards the West Picnic Spot like Begum Talab, District Hospital, Vijayapura-Jamakhandi Road, many Residential Layouts, Chikkodi-Jevaragi State Highway No.12, Petrol Pumps and Educational Institutions. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring

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lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The ASLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218 Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura

is know as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13. The same has not been considering for determining the market value of the acquired land by the ASLAO. On these main grounds and other grounds, the claimant sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality.

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The compensation amount awarded is just and proper and the claimant only in order to get more compensation has exaggerated the potentiality of the land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition:

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.526 to 535 of 2018 with the present case i.e. L.A.C. No.525 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.526 to 535 of 2018 with the present case i.e. L.A.C.No.525 of 2018 for the purpose of common evidence:

8. The claimant in L.A.C.No.531/2018 by name Suraj S/o Ashok Kambale @ Kamat has deposed on his behalf and behalf of claimants in L.A.C. Nos.525 to 530 and 532 to 535 of 2018 and reiterated the averments of

respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-86. The respondents marked Copies of Award as per Ex.R-1 to Ex.R-11.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimant filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-86 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-14-Government Notification, which discloses that the acquired land comes within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-16-Notification and contended that Mahalbagayat area comes within the Vijayapura City Municipal limits and the same was declared as smaller urban area. Learned Counsel for the claimant further argued that basing on Ex.P-1 to Ex.P-86, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the

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acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimants are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimants are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands. The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?

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2. Whether the claimant is entitled for enhancement of award amount as prayed for ?

3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order
for the following:

REASONS

13. **POINT No.1:-** It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 20-02-2018 and the reference application is filed on 26-03-2018. Hence, reference petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioner/claimant has proved that he has filed reference petition under Section 64 of the Right to Fair

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Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimant that the claimant is the owner of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimant and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimant stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, Banks, Educational Institutions, District Court Complex, Government Offices, towards the South many Residential Colonies and Layouts, Agriculture College and University and Hotels, towards East N.H.218 Vijayapura-Hubballi Road, many Residential Layouts.

Educational Institutions and Ibrahimpur Railway Station and towards the West Picnic Spot like Begum Talab, District Hospital, Vijayapura-Jamakhandi Road, many Residential Layouts, Chikkodi-Jevaragi State Highway No.12, Petrol Pumps and Educational Institutions. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The ASLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs

of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218 Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is known as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13. The same has not been considering for determining the market value of the acquired land by the ASLAO. On these main grounds and other grounds, the claimant sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.531/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.525 to 530 and 532 to 535 of 2018 and 86 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-11 are the Reference Applications. Ex.P-12 and Ex.P-13 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.996/1 of Mahalbagayat. Ex.P-14 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-15 is the Certified Copy of Local Planning Area Map of Vijayapura City. Ex.P-16 is the Copy of Government Notification dated 02-04-2001. Ex.P-17 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-17 and the same is marked as Ex.P-17(a). Ex.P-18 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru, dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-19 is the Vijayapura Taluka Map. Ex.P-20 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura

from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-20, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-21 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant relied Ex.P-21 for fixing the market value on the squire metre basis. Ex.P-22 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-23 to Ex.P-27 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-28 to Ex.P-59 are the Certified Copies of Registered Sale Deeds of Mahalbagayat Village, Vijayapura. Ex.P-60 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-61 is the Certified Copy of the Order passed by the

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Arbitrator, NHAI and D.C. Vijayapura. Ex.P-62 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-63 and Ex.P-64 are the Certified Copies of Compensation Payment Register, Tidagundi Village. Ex.P-65 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagundi Village from agriculture to commercial purposes. Ex.P-66 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-67 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-68 is the Certified Copy of Sale Deed. Ex.P-69 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-70 is the Certified Copy of the Indemnity Bond. Ex.P-71 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-72 is the Certified Copy of Memorandum. Ex.P-73 is the Certified Copy of

Vouchers for Payment of Compensation. Ex.P-74 is the Certified Copy of Indemnity Bond. Ex.P-75 is the Certified Copy of Memorandum. Ex.P-76 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-77 is the Certified Copy of Indemnity Bond. Ex.P-78 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-79 is the Certified Copy of Memorandum. Ex.P-80 is the Certified Copy of Additional Award in respect of Tidagundi Village. Ex.P-81 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-82 is the Certified Copy of Indemnity Bond. Ex.P-83 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-84 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-85 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-86 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents to show that the

acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population, a notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He admitted the suggestion that Milan Petrol Pump is situated at Jamakhandi Road and the distance between Jamakhandi Road and Bagalkot Road is about 1-Km. He denied the suggestion that he deposed falsely by stating on all directions of the acquired land were fully developed and layouts were formed. He admitted

the suggestion that Al-Ameen College is situated in Athani Road. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in the examination-in-chief, he has deposed falsely about industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on square foot basis and sale of agricultural land was on acre basis. He denied the

suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-23 to Ex.P-27 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-23 to Ex.P-27 were high. He admitted the suggestion that Ex.P-14 Notification relating to comprehensive development of period of 20 years of Vijayapura. He denied the suggestion that the acquired properties shown in Ex.P-17 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-28 to Ex.P-59, were pertaining to Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-28 to Ex.P-59 the sites shown in them were situated in the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-60 does not applicable to

acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-68 is a created document. He denied all other contrary suggestions which he has stated in his examination-in-chief.

19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-28 to Ex.P-59 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years

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11(1) Notification dated 15-07-2014. The details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	28	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	29	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	30	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	31	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	32	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	33	5.7.12	3267/12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	34	2.8.12	4442/12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	35	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	36	7.8.12	4649/12-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	37	22.8.12	5220/12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85
11.	38	22.8.12	5224/12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	39	27.12.12	10240/12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	40	8.1.13	10580/12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03
14.	41	22.2.13	12442/12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	42	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	43	26.6.13	3069/13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	44	25.7.13	4389/13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	45	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65

19.	46	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	47	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	48	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	49	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	50	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	51	12.11.13	8709/ 13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	52	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	53	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	54	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	55	25.2.14	13275/ 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	56	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	57	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.66
31.	58	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	59	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land by Collector.-(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

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- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale

price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or coverage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

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23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-23 to Ex.P-27 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-23 to Ex.P-27 would not indicate the normal value of the lands. Hence, Ex.P-23 to Ex.P-27 were not taken into consideration. In the above said table, Ex.P-30 to Ex.P-34, Ex.P-36 to Ex.P-41, Ex.P-48 and Ex.P-49 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a

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competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-46, the price per squire metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands. Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur- ement	Sale Value	Per Sq.Mtr.
1.	28	12.8.11	5406/ 11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	29	4.10.11	7404/ 11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	35	3.8.12	4506/ 12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
4.	42	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	43	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	44	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	45	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65

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8.	47	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	50	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	51	12.11.13	8709/ 13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	52	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	53	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	54	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	55	25.2.14	13275/ 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
15.	56	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	57	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.66
17.	58	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	59	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

24. As per Section 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into

The average Highest Sale Price of above said exhibited Dry lands:

Rs. $\frac{76217.48}{9}$ = 8468.60/- per Sq. Metre for land

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimants relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao & Anr. Etc. Vs. The Special Land Acquisition Officer** as per Ex.P-62. In Ex.P-62, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the

purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimant contended that the acquired land is N.A. potential land and comes within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out.

Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimant is entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimant is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points No.1 and 2, I proceed to pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimant in respect of land bearing R.S.No.996/1 is entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 3-acres 10-guntas of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimant is also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimant is also entitled for interest at the rate of 9% per annum U/Sec.72 of the

Right to Fair Compensation and
Transparency in Land Acquisition,
Rehabilitation and Resettlement Act, 2013 on
the enhanced compensation for a period of
one year from the date of dispossession and
thereafter, at the rate of 15% per annum for
the subsequent period till the date of
payment or deposit. The claimant is entitled
to all statutory benefits available under the
law.

The amount, if any, already paid to the
claimant, shall be deducted in the above said
amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly,
corrected, signed and then pronounced by me in the Open
Court on this the 10th day of April, 2019)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE**List of Witnesses examined on behalf of Claimant:**

P.W.1 : Suraj S/o Ashok Kambale @ Kamat,
R/o Gyangabawadi, Vijayapura.

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimant:

Ex.P-1 to Ex.P-11 : Reference Applications filed before respondents.

Ex.P-12 & Ex.P-13 : C.C. of Order passed by Respondent No.1.

Ex.P-14 : C.C. of Notification dated 28.6.1976.

Ex.P-15 : C.C. of Vijayapura City Map.

Ex.P-16 : C.C. of Notification dated 2.4.2001.

Ex.P-17 : C.C. of Map.

Ex.P-17(a) : Acquired Area shown in Yellow Colour in Ex.P-17.

Ex.P-18 : Attested Copy of Gazette Notification dated 20-12-2013.

Ex.P-19 : Vijayapura Taluka Map.

Ex.P-20 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.

Ex.P-21 : Letter of Assistant Controller, Rights and Measure Department, Vijayapura.

Ex.P-22 : C.C. of Order passed in Writ Petition No.201027/2015.

Ex.P-23 to Ex.P-27 : Details of Auctioned Plots.

Ex.P-28 to Ex.P-59 : C.C. of Sale Deeds.

Ex.P-60 : C.C. of Judgment in Civil Appeal No.1645-1648 of 2016.

- Ex.P-61 : C.C. of Order passed by the Court of the Arbitrator National Highway Authority of India, Deputy Commissioner, Vijayapura.
- Ex.P-62 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-63 & Ex.P-64 : C.C. of Compensation Payment Registers of Tidagundi Village.
- Ex.P-65 & Ex.P-66 : C.C. of Memorandums issued by D.C., Vijayapura.
- Ex.P-67 : C.C. of Award No.NH 13/CALA/BJP/CR-14/2011-12 dated 11-10-2013.
- Ex.P-68 : C.C. of Sale Deed.
- Ex.P-69 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-70 : C.C. of Indemnity Bond.
- Ex.P-71 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-72 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-73 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-74 : C.C. of Indemnity Bond.
- Ex.P-75 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-76 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-77 : C.C. of Indemnity Bond.
- Ex.P-78 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-79 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-80 : C.C. of Excess & Additional Area Award No.NH 13/CALA/BJP/CR-14/2012-13 dated 31-5-2016.

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- Ex.P-81 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-82 : C.C. of Indemnity Bond.
- Ex.P-83 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-84 : C.C. of Office Order passed by the Assistant Commissioner, Vijayapura & Competent Authority for Land Acquisition, NH.13 (Solapur Section).
- Ex.P-85 : C.C. of Toll Plaza Area Original Award No.NH 13/CALA/BJP/CR-14/2015-16 dated 31-7-2016.
- Ex.P-86 : Valuation Report.

List of Documents marked on behalf of Respondents:

Ex.R-1 to Ex.R-11: Copies of Award No.LAQ:SR:29/2014-15 dated 15-02-2018.

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE-B-7

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
& THE LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY,
VIJAYAPURA**

Present :

Sri Raghavendra Gowda B.G.,
B.A.L., LL.B.,
I Additional District Judge,
Vijayapura

Dated this the 10th day of April, 2019

L.A.C.No.526/2018

BETWEEN:

1. Baburav @ Babu S/o Shivagondappa @ Shivappa
Pujari, Age: 47 years, Occ: Agriculture.
2. Apparay @ Appu S/o Shivagondappa @ Shivappa
Pujari, Age: 45 years, Occ: Agriculture.
3. Annappa S/o Shivagondappa @ Shivappa
Pujari, Age: 43 years, Occ: Agriculture.
4. Yashavanth S/o Shivagondappa @ Shivappa
Pujari, Age: 38 years, Occ: Agriculture.

All are R/o Kasageri Galli, Vijayapura.

Claimants/Applicants.

(By Sri S.S.Dongargavi, Advocate)

AND

1. The Addl. Special Land Acquisition Officer,
UKP, Almatti.

2. The Commissioner,
Rehabilitation, Resettlement and Land
Acquisition,
Ex-Officio Secretary to the Government
Revenue Department,
UKP, Navanagar, Bagalkot.
3. The Chief Secretary,
State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

Respondents.

(R-1 & 2 - by Sri B.M.Gorbal,
Special Government Counsel, UKP Almatti)
(R.3 - by Sri V.N.Patil,
Addl.District Government Pleader, Vijayapura)

JUDGMENT

1. This is a petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation arising out of award under LAQ:SR:No.29/2014-15, which was pronounced on 20-02-2018 and 11(1) Notification is dated 15-07-2014.

2. The Additional Special Land Acquisition Officer, Upper Krishna Project, Almatti i.e. the respondent No.1 herein acquired the lands of Mahalbagayat Village, Vijayapura for the purpose of

construction of Rehabilitation Centre of Chikkagalagali Village through a Notification dated 15-07-2014 under Section 11(F) of the RFCTLARR Act. Final Notification under Section 19(1) of the said Act was issued on 19-11-2016. The respondent No.1 has pronounced the award on 20-02-2018. In the award, the market value of lands determined as Rs.7,36,840/- per acre for the acquired lands.

3. The details of the acquired land of the claimants are as under:

Sy.No.	Acquired Area A-G	Village
996/1	3-21	Mahalbagayat

4. Feeling dissatisfied by the quantum of compensation awarded by respondent No.1, the claimants have filed their protest petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by urging certain grounds for determination of the proper market value of the acquired land. The respondent No.1 in turn referred the matter to this Court for determination of the market value.

5. Grounds urged by the claimants in the petition are that, the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, Banks, Educational Institutions, District Court Complex, Government Offices, towards the South many Residential Colonies and Layouts, Agriculture College and University and Hotels, towards East N.H.218 Vijayapura-Hubballi Road, many Residential Layouts, Educational Institutions and Ibrahimpur Railway Station and towards the West Picnic Spot like Begum Talab, District Hospital, Vijayapura-Jamakhandi Road, many Residential Layouts, Chikkodi-Jevaragi State

Highway No.12, Petrol Pumps and Educational Institutions. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The ASLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218 Vijayapura-Hubballi Road,

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KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is known as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13. The same has not been considering for determining the market value of the acquired land by the ASLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

6. The Learned Special Government Counsel appeared for the respondents No.1 and 2 and filed their statement of objections and Additional District Government Pleader appeared on behalf of respondent No.3 and filed a memo adopting the statement of

objections of respondents No.1 and 2. In the statement of objections, respondents contended that the method adopted by the respondent No.1 was proper and in accordance with law and as per provision of RFCTLARR Act. The acquired lands do not have N.A. potentiality. The compensation amount awarded is just and proper and the claimants only in order to get more compensation have exaggerated the potentiality of the land without placing any materials, the reference petition is barred by limitation and hence, sought for dismissal of the petition.

7. On the application filed by the Advocate for claimants, for consolidation of cases L.A.C. No.526 to 535 of 2018 with L.A.C. No.525 of 2018 for the purpose of common evidence, on the grounds that these reference petitions arise out of the same notification in respect of lands situated in Mahalbagayat, Vijayapura, purpose of acquisition is also one of the same. This Court ordered to consolidate L.A.C.No.526 to 535 of 2018 with L.A.C.No.525 of 2018 for the purpose of common evidence.

8. The claimant in L.A.C.No.531/2018 by name Suraj S/o Ashok Kambale @ Kamat has deposed on his behalf and behalf of claimants in L.A.C. Nos.525 to 530 and 532 to 535 of 2018 and reiterated the averments of respective reference petitions in his examination-in-chief affidavit and got marked documents at Ex.P-1 to Ex.P-86. The respondents marked Copies of Award as per Ex.R-1 to Ex.R-11.

9. I have heard the arguments and perused the materials placed on record. The Counsel for the claimants filed written argument and urged that the compensation fixed by the SLAO is very meager and he relies on Ex.P-1 to Ex.P-86 for enhancement of compensation. He further contended that the acquired lands situated within the Vijayapura Corporation and VDA and in support of the said contention, he relied on Ex.P-14-Government Notification, which discloses that the acquired land comes within the local planning area of Vijayapura Town. The learned Counsel further relied on Ex.P-16-Notification and contended that Mahalbagayat area comes within the Vijayapura City Municipal limits and the same was declared as smaller

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urban area. Learned Counsel for the claimants further argued that basing on Ex.P-1 to Ex.P-86, the compensation fixed by the LAO is not proper and hence sought to determination of the market value of the acquired lands and fix the compensation as per RFCTLARR Act.

10. Learned Special Government Counsel for the respondents submits that respondents have properly fixed market value of the land after taking into consideration of all factors and the Sale Deeds relied by the claimants are smaller in extent and they cannot be considered for lands acquired in this case and some of the Sale Deeds are auction Sale Deeds. The Sale Deeds produced by the claimants are within the ring road limit of the Vijayapura and the acquired lands are situated beyond the ring road limit. There is no immediate development aspects in respect of the acquired lands. The SLAO properly considered the Sale Deeds of the same Village and accordingly properly fixed the market price. Hence, sought to dismiss the claim petitions.

11. In view of the above evidence and materials, the Points that arise for determination are :

1. Whether the reference petition is within time?
2. Whether the claimants are entitled for enhancement of award amount as prayed for ?
3. What award or order ?

12. My answer to the above Points are as under:

Point No.1 : In the Affirmative.

Point No.2 : Partly in the Affirmative.

Point No.3 : As per final order
for the following:

REASONS

13. POINT No.1:- It is the specific contention of the respondents that the reference petition is barred by limitation. On careful perusal of the Award, it is pronounced on 20-02-2018 and the reference application is filed on 26-03-2018. Hence, reference petition was within period of six weeks from the date of award as per Sec.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, which is well within period

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of limitation. Therefore, much discussion is not required with regard to this point. Hence, petitioners/claimants have proved that they have filed reference petition under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 well within a period of limitation. Accordingly, I answer Point No.1 in the Affirmative.

14. **POINT No.2:-** It is the case of the claimants that the claimants are the owners of acquired land which is N.A. potential land situated in Mahalbagayat, Vijayapura. The award has been passed by the respondent No.1 without giving any notice and sufficient opportunity of hearing to claimants and not provided any rehabilitation and resettlement benefits under the new Act, 2013. The acquired land is situated within Vijayapura City Corporation and VDA limits and hence, the acquired land ought to have been acquired as a residential sites but not as a agricultural land and the claimants stated that towards North of the acquired land so many Residential Colonies, Petrol Pumps, Banks, Educational Institutions, District Court

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Complex, Government Offices, towards the South many Residential Colonies and Layouts, Agriculture College and University and Hotels, towards East N.H.218 Vijayapura-Hubballi Road, many Residential Layouts, Educational Institutions and Ibrahimpur Railway Station and towards the West Picnic Spot like Begum Talab, District Hospital, Vijayapura-Jamakhandi Road, many Residential Layouts, Chikkodi-Jevaragi State Highway No.12, Petrol Pumps and Educational Institutions. The acquired land is situated within the heart of Vijayapura City and within Ward No.22 of Vijayapura City and it has got building and potential as on the date of the 11(1) Notification. The neighbouring lands' owners converting their lands into N.A. and sold at the rate of Rs.43,000/- to 53,800/- per Sq.Metre, but avoid payment of stamps duty and registration, they have shown minimum charges. The ASLAO has not considered the sale transaction sold by VDA and City Corporation, Vijayapura and other private owners at the time of 11(1) Notification. Due to the rapid development, there is escalation prices every year. Vijayapura City is a developing City and there is a

demand for residential site and there are many educational institutions and the City is now being called as 'City of Education'. On the establishment of NTPC, Kudagi, which is near to Vijayapura, many Staffs of NTPC are settled in Vijayapura, thereby N.A. potential of land is increasing. The acquired land is situated near NH-50 4/6 laning from Solapur-Chitradurga Road, NH-218 Vijayapura-Hubballi Road, KHB Road, Ring Road of Vijayapura City and surrounding roads linked with the acquired land. Thus, acquired land has got residential and commercial potentiality even it is agricultural land and it is situated within the City Corporation limit. Vijayapura is known as 'Historic City' and there are many Historic Monuments and it is a Tourist Hub. The SLAO has not taken into consideration on this aspect. The City Corporation, Vijayapura and VDA, Vijayapura auctioned some plots at the rate of Rs.53,800/- per Sq.Metre in the year 2012-13. The same has not been considering for determining the market value of the acquired land by the ASLAO. On these main grounds and other grounds, the claimants sought in the petition to fix the

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market value at Rs.53,800/- per Sq.Metre and also grant 100% solatium and other statutory benefits under the RFCTLARR Act, 2013.

15. The claimant in L.A.C. No.531/2018 has examined himself as P.W.1 and deposed on his behalf and on behalf of other claimants in L.A.C. Nos.525 to 530 and 532 to 535 of 2018 and 86 documents are marked by the claimant.

16. Ex.P-1 to Ex.P-11 are the Reference Applications. Ex.P-12 and Ex.P-13 are the Certified Copies of the Order passed by the respondent No.1 in respect of Sy.No.996/1 of Mahalbagayat. Ex.P-14 is the Certified Copy of Notification No.HMA 36(i) TTP 76, Bengaluru pertaining to notification of Vijayapura Local City planning area. Ex.P-15 is the Certified Copy of Local Planning Area Map of Vijayapura City. Ex.P-16 is the Copy of Government Notification dated 02-04-2001. Ex.P-17 is the Vijayapura Map. The acquired lands are shown in Yellow Colour in Ex.P-17 and the same is marked as Ex.P-17(a). Ex.P-18 is the Attested Copy of Gazette Notification No.UDD 153 MLR 2013, Bengaluru.

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dated 20-12-2013 regarding establishment of City Corporation of Vijayapura. Ex.P-19 is the Vijayapura Taluka Map. Ex.P-20 is the Approved Layout List of Vijayapura issued by Commissioner, VDA, Vijayapura from 1990-91 to 2017-18 and the claimant contended that as per Ex.P-20, 90% of the layouts are approved layout in Mahalbagayat Vijayapura and number of layouts are just abutting to acquired lands and same is not considered by the SLAO while fixing the market value of the acquired land at the time of award. Ex.P-21 is the Letter of Assistant Controller, Rights and Measure Department regarding 1-acre = 4046.856 Sq.Metre. The claimant relied Ex.P-21 for fixing the market value on the square metre basis. Ex.P-22 is the Certified Copy of the Order dated 22-07-2016 in W.P. No.201027/2015 on the file of Hon'ble High Court of Karnataka, Kalaburagi Bench. Ex.P-23 to Ex.P-27 are the List of Auctioned Plots of Mahalabagayat Village auctioned by VDA, Vijayapura dated 18-08-2011, 29-09-2011, 23-08-2012, 30-12-2014 and 19-08-2015 respectively. Ex.P-28 to Ex.P-59 are the Certified Copies of Registered Sale Deeds of Mahalbagayat

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Village, Vijayapura. Ex.P-60 is the Certified Copy of the Judgment passed by the Hon'ble Apex Court in Civil Appeal No.1645-1648/2016 dated 07-07-2017. Ex.P-61 is the Certified Copy of the Order passed by the Arbitrator, NHAI and D.C. Vijayapura. Ex.P-62 is the Certified Copy of Memorandum dated 17-10-2011 for permission of granting conversion of Sy.No.140/2 from agriculture to commercial purposes. Ex.P-63 and Ex.P-64 are the Certified Copies of Compensation Payment Register, Tidagundi Village. Ex.P-65 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.14/1 and Sy.No.18/3 of Tidagindi Village from agriculture to commercial purposes. Ex.P-66 is the Certified Copy of Memorandum dated 12-10-2011 permission of granting conversion of Sy.No.17/2 and Sy.No.18/2 of Tidagundi Village from agriculture to commercial purposes. Ex.P-67 is the Certified Copy of Award Proceedings dated 11-10-2013 in respect of acquisition of lands in Tidagundi Village. Ex.P-68 is the Certified Copy of Sale Deed. Ex.P-69 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-70 is the

Certified Copy of the Indemnity Bond. Ex.P-71 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-72 is the Certified Copy of Memorandum. Ex.P-73 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-74 is the Certified Copy of Indemnity Bond. Ex.P-75 is the Certified Copy of Memorandum. Ex.P-76 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-77 is the Certified Copy of Indemnity Bond. Ex.P-78 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-79 is the Certified Copy of Memorandum. Ex.P-80 is the Certified Copy of Additional Award in respect of Tidagundi Village. Ex.P-81 is the Certified Copy of Vouchers for Payment of Compensation. Ex.P-82 is the Certified Copy of Indemnity Bond. Ex.P-83 is the Certified Copy of Compensation Payment Register of Tidagundi Village. Ex.P-84 is the Certified Copy of Office Order dated 26-10-2016. Ex.P-85 is the Certified Copy of Award Proceedings in respect of Vijayapura-Solapur Road. Ex.P-86 is the Valuation Report.

17. During the course of cross-examination of P.W.1 by the respondents, P.W.1 denied the suggestion that other claimants have not given authorization to lead evidence on their behalf. He denied the suggestion that he has not produced documents to show that the acquired lands were N.A. potentiality lands. He admitted the suggestion that he has not produced acknowledgement of documents submitted to LAO. He denied the suggestion that before passing award, they have not filed applications to the respondents in respect of valuation of the lands. He denied the suggestion that applications were barred by limitation. He admitted the suggestion that he has not produced endorsement for submitting applications. He admitted the suggestion that on the basis of the population, a notification came to be issued treating Vijayapura Town as a City Municipal Council. He denied the suggestion that the Notifications produced by him were pertaining to comprehensive development plan. He denied the suggestion that he has not produced the documents to show that layouts were formed adjacent to acquired lands. He admitted the suggestion that Milan Petrol

Pump is situated at Jamakhandi Road and the distance between Jamakhandi Road and Bagalkot Road is about 1-Km. He denied the suggestion that he deposed falsely by stating on all directions of the acquired land were fully developed and layouts were formed. He admitted the suggestion that Al-Ameen College is situated in Athani Road. He admitted the suggestion that Vijayapura City is Tourist Place. He denied the suggestion that because of Tourism, the value of the properties would not fetch more. He deposed that there are two Medical Colleges in Vijayapura Town. He denied the suggestion that he falsely stated that four Ayurvedic and four Diploma Colleges were situated in Vijayapura. He denied the suggestion that because of the educational institutions, value of the property will not fetch more. He denied the suggestion that people prefer Bagalkot, Hubballi and Kalaburagi rather than Vijayapura. He denied the suggestion that in the examination-in-chief, he has deposed falsely about industrial corridor, NTPC and Solar Park. He denied the suggestion that after demonetization prices of property were fallen down. He admitted the suggestion

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that he has not applied for any application for converting his land. He admitted the suggestion that sale of sites was on squire foot basis and sale of agricultural land was on acre basis. He denied the suggestion that in order to obtain more compensation, he was falsely deposing before the Court.

18. He admitted the suggestion that Ex.P-23 to Ex.P-27 were pertaining to sale of property in auction. He denied the suggestion that the said properties were situated within the ring road and corner properties, hence the purchasers have purchased on competitive price in a bid. Hence, the prices mentioned in Ex.P-23 to Ex.P-27 were high. He admitted the suggestion that Ex.P-14 Notification relating to comprehensive development of period of 20 years of Vijayapura. He denied the suggestion that the acquired properties shown in Ex.P-17 were adjacent to KASABA Village. He admitted the suggestion that the properties, which were purchased under Ex.P-28 to Ex.P-59, were pertaining to Sy.No.308 of Mahalbagayat and they were situated within ring road. He admitted the suggestion that Ex.P-28 to Ex.P-59 the sites shown in them were situated in

the developed land, hence they will fetch more price. But, he denied the suggestion that because of that the acquired lands were not fetch more price. He denied the suggestion that Ex.P-60, does not applicable to acquired lands. He admitted the suggestion that lands situated in Kannal Village were situated in Solapur Road. He denied the suggestion that the said lands were situated about 20-25 km. from Vijayapura. He stated that the said properties were situated within 12 Km. from Vijayapura. He admitted the suggestion that Kannal Village does not come within the purview of City of Vijayapura Council. He denied the suggestion that enquiry was going on in respect of fixation of pricing of lands of Kannal Village. He admitted that Tidagundi is situated 22 Km. away from Vijayapura and it was a small Village. He pleaded ignorance about the enquiry in respect of fixation of pricing of lands in Tidagundi Village. He denied the suggestion that Ex.P-68 is a created document. He denied all other contrary suggestions which he has stated in his examination-in-chief.

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19. Respondent No.3 adopted the cross-examination of respondents No.1 and 2.

20. P.W.1 has produced Ex.P-28 to Ex.P-59 32 Certified Copies of Registered Sale Deeds of Mahalbagayat Village immediately preceding three years 11(1) Notification dated 15-07-2014. The details of the Certified Copies of the following documents are shown in the below table:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measurement	Sale Value	Per Sq.Mtr.
1.	28	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9.88,550/-	9153.24
2.	29	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	30	8.6.12	2179/12-13	308/E Site-54	108 Sq.Mtr.	17,10,000/-	15833.33
4.	31	2.7.12	3126/12-13	308/E Site-13	135 Sq.Mtr.	20,00,000/-	14814.81
5.	32	4.7.12	3261/12-13	308/E Site-57	216 Sq.Mtr.	28,80,000/-	13333.33
6.	33	5.7.12	3267/12-13	308/E Site-52	108 Sq.Mtr.	12,95,000/-	11990.74
7.	34	2.8.12	4442/12-13	308/E Site-30	216 Sq.Mtr.	25,70,000/-	11898.14
8.	35	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07
9.	36	7.8.12	4649/12-13	308/E Site-46	108 Sq.Mtr.	12,70,000/-	11759.25
10.	37	22.8.12	5220/12-13	308/E Site-63	216 Sq.Mtr.	32,35,000/-	14976.85
11.	38	22.8.12	5224/12-13	308/E Site-66	186 Sq.Mtr.	26,10,000/-	14032.25
12.	39	27.12.12	10240/12-13	308/E Site-11	135 Sq.Mtr.	18,60,000/-	13777.77
13.	40	8.1.13	10580/12-13	308/E Site-58	216 Sq.Mtr.	30,05,000/-	13912.03

14.	41	22.2.13	12442/ 12-13	308/E Site-8	135 Sq.Mtr.	18,00,000/-	13333.33
15.	42	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
16.	43	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
17.	44	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
18.	45	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
19.	46	23.8.13	5478/ 13-14	953/5-K Plot-34	34.8 Sq.Mtr.	7,50,000/-	21551.72
20.	47	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
21.	48	15.10.13	7628/ 13-14	308/2A/2A Plot-631	276 Sq.Mtr.	40,10,000/-	14528.98
22.	49	15.10.13	7633/ 13-14	308/2A/2A Site-656	236 Sq.Mtr.	32,40,000/-	13728.81
23.	50	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
24.	51	12.11.13	8709/ 13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
25.	52	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
26.	53	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
27.	54	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
28.	55	25.2.14	13275/ 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
29.	56	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
30.	57	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.66
31.	58	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
32.	59	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

21. In this regard, it is necessary to refer Section 26 of the Right to Fair Compensation and Transparency

in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It reads as under:

26. Determination of market value of land

by Collector.—(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

- (a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or
- (b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or
- (c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the

year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

22. The above provision U/Sec.26 of the Act clearly reveals the criteria to be adopted by the Collector in assessing and determining the market value

of acquired land based on the market value, if any, specified in Indian Stamp Act for registration of Sale Deeds or agreement to sell or overage sale price for similar type of land situated in the nearest Village or nearest vicinity area, whichever is higher.

23. This Court adopts the method while determining the market value of the lands as per Explanation II of Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Considering the fact that acquired lands are potential lands and the claimant has produced the Sale Deeds, which are well within the vicinity of the acquired lands. Hence, this Court is of the considered opinion that basing on the Sale Deeds produced by the claimant, determination of market value has to be done. The claimant in his cross-examination admitted that Ex.P-23 to Ex.P-27 were relating to sale of auction plots pertaining to VDA, Vijayapura. Normally in an auction, the properties were put in bid and sold in a competitive price because of its location and potentiality. Hence, the auction prices shown in Ex.P-23 to Ex.P-27 would not indicate

the normal value of the lands. Hence, Ex.P-23 to Ex.P-27 were not taken into consideration. In the above said table, Ex.P-30 to Ex.P-34, Ex.P-36 to Ex.P-41, Ex.P-48 and Ex.P-49 are Sale Deeds pertaining to auctions and normally in an auction, properties purchased in a competitive price and it does not reflect real market value. Hence, the said Sale Deeds are not taken into consideration for determination of the market value of the acquired land. In Ex.P-46, the price per squire metre is Rs.21,551.72, which is excessive and exorbitant and it cannot be applied to the present case for fixing the market value of the acquired lands. Hence, as per Section 26(1) Explanation-4, these documents are not taken into consideration. Hence, out of the total Sale Deeds, the following regular and traditional Sale Deeds were taken into consideration by this authority for determining the market value of the acquired lands:

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	28	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	29	4.10.11	7404/11-12	412K Plot-1	279 Sq.Mtr.	21,00,000/-	7526.88
3.	35	3.8.12	4506/12-13	1020/1-B Plot-12	135 Sq.Mtr.	10,17,100/-	7534.07

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4.	42	27.5.13	1701/ 13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
5.	43	26.6.13	3069/ 13-14	1020/4-D Plot-15	135 Sq.Mtr.	10,17,100/-	7534.07
6.	44	25.7.13	4389/ 13-14	1020/1-B Plot-42	180 Sq.Mtr.	13,56,600/-	7536.66
7.	45	19.8.13	5279/ 13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
8.	47	2.9.13	5934/ 13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
9.	50	29.10.13	8178/ 13-14	1020/1-B Plot-51	108 Sq.Mtr.	8,14,100/-	7537.96
10.	51	12.11.13	8709/ 13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81
11.	52	28.12.13	10569/ 13-14	1020/4-D Plot-16	135 Sq.Mtr.	10,17,100/-	7534.07
12.	53	2.1.14	10732/ 13-14	1020/1-B Plot-92	135 Sq.Mtr.	10,17,100/-	7534.07
13.	54	5.2.14	12184/ 13-14	1019/1A-B Plot-38	135 Sq.Mtr.	10,17,100/-	7534.07
14.	55	25.2.14	13275/ 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
15.	56	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
16.	57	29.4.14	1158/ 14-15	1020/1-B Plot-49	108 Sq.Mtr.	8,14,500/-	7541.66
17.	58	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
18.	59	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37

Hence, out of the total 18 Sale Deeds which were taken into consideration which were shown in the aforesaid table, half of the Sale Deeds of the highest price were taken into consideration for fixing the market value of the lands.

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24. As per Section. 26(1) Explanation-2 which relates to determining the average sale price referred to in Explanation-1, one half of the total number of the Sale Deeds or Agreements to sell in which the highest sale price has been mentioned shall be taken into account. Accordingly, Ex.P-28, Ex.P-42, Ex.P-45, Ex.P-47, Ex.P-51, Ex.P-55, Ex.P-56, Ex.P-58 and Ex.P-59 were taken into consideration. Accordingly, the average sale price one half of the total number of the highest sale price of similar type of land situated in the nearest village or near vicinity of the acquired lands are as follows:

The average sale price of the highest sale price of Mahalbagayat Village or near vicinity of the acquired lands..

Sl. No.	Exh. Nos.	Date	Reg. No.	Sy.No. of M.B.	Measur ement	Sale Value	Per Sq.Mtr.
1.	28	12.8.11	5406/11-12	75/B Plot-24	108 Sq.Mtr.	9,88,550/-	9153.24
2.	42	27.5.13	1701/13-14	1020/1-B 1020/4-D Plot-43 Plot-1	180 Sq.Mtr.	14,34,120/-	7967.33
3.	45	19.8.13	5279/13-14	412K Plot-8	194.85 Sq.Mtr.	17,00,000/-	8724.65
4.	47	2.9.13	5934/13-14	1019/1K-D Plot-72	132 Sq.Mtr.	11,17,261/-	8464.09
5.	51	12.11.13	8709/13-14	1020/1-B Plot-4	216 Sq.Mtr.	16,85,625/-	7803.81

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6.	55	25.2.14	13275/ 13-14	1019/1B/1-K Plot-10	135 Sq.Mtr.	10,75,621/-	7967.56
7.	56	10.3.14	13890/ 13-14	1019/1K-D Plot-71	150 Sq.Mtr.	11,57,753/-	7718.35
8.	58	16.5.14	2129/ 14-15	1019/1A-B Plot-72	300 Sq.Mtr.	29,86,825/-	9956.08
9.	59	23.6.14	4857/ 14-15	1019/1A-B Plot-26	135 Sq.Mtr.	11,42,421/-	8462.37
							76217.48

The average Highest Sale Price of above said exhibited Dry lands:

Rs. $\frac{76217.48}{9}$ = 8468.60/- per Sq. Metre for land

As per the above calculation, the market value of the land is Rs.8468.60/-, which is rounded to Rs.8469/-, considering the fact that while determining the true market value of the acquired land and especially when the acquired land is a large chunk of undeveloped land, it is just and reasonable to make appropriate deduction towards the expenses for development of acquired land. The Hon'ble Apex Court in its various decisions held that at what percentage the deduction should be made vary from 10% to 86%. The learned Counsel for the claimants relied on the decision of Hon'ble Apex Court rendered in the matter of **Vithal Rao &**

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Officer as per Ex.P-62. In Ex.P-62, the Hon'ble Apex Court in the aforesaid decision held at Para 29 that in respect of deduction, whether the land is developed or not and, if so, to what extent, the purpose of acquisition, etc. It has also been held that while determining the market value of the large chunk of land, the value of smaller piece of land can be taken into consideration after making proper deduction in the value of lands and when sale deeds of larger parcel of land are not available and also held that the Court should also take into consideration the potentiality of the acquired land. Keeping in mind aforesaid principles, this Court holds that since the acquired land is not fully developed, however the Sale Deeds produced by the claimant are situated near proximity of the acquired land, having regard to the total taking into account of the totality of the circumstances, acquired land is not converted land and it is an agricultural land and the Counsel for the claimants contended that the acquired land is N.A. potential land and comes

within the limits of VDA, Vijayapura. This Court is of the view that considering the nature and location of the property, it would be fair and proper to deduct 70% of the amount towards development charges out of the average price worked out. Accordingly, if 70% of the amount is deducted on Rs.8,469/-, the market value of the land is Rs.2,540.70 Paise which is rounded to Rs.2,541/-. Hence, I hold that market value of the land is Rs.2,541/- per Sq.Metre.

25. Since the acquired land comes within the city limits, the SLAO has properly applied the multiplication of factor of '1' to the acquired land in the Award.

26. Therefore, the claimants are entitled for Rs.2,541/- per Sq.Metre for acquired land. Therefore, the petition of the present claimants is allowed in part. Hence, Point No.2 is answered Partly in the Affirmative.

27. **POINT No.3:-** In view of findings on Points No.1 and 2, I proceed to pass the following:

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33.

L.A.C.526/2018.

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is allowed in part with costs.

The claimants in respect of land bearing R.S.No.996/1 are entitled for enhancement compensation of Rs.2,541/- per Sq.Metre to the extent of acquired land of 3-acres 21-guntas of Mahalbagayat, Vijayapura.

The respondents' authorities are also directed to pay the solatium at the rate of 100% of the market value of acquired land U/Sec.30(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled to additional market value at the rate of 12% per annum U/Sec.30(3) of the Right to Fair Compensation and Transparency in Land

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Acquisition, Rehabilitation and Resettlement
Act, 2013.

The claimants are also entitled for interest at the rate of 9% per annum U/Sec.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for the subsequent period till the date of payment or deposit. The claimants are entitled to all statutory benefits available under the law.

The amount, if any, already paid to the claimants, shall be deducted in the above said amount.

The Advocate Fee is fixed at Rs.1,000/-.

Draw Award accordingly.

(Dictated to the Stenographer on Computer directly, corrected, signed and then pronounced by me in the Open Court on this the 10th day of April, 2019)

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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L.A.C.526/2018.

ANNEXURE

List of Witnesses examined on behalf of Claimants:

P.W.1 : Suraj S/o Ashok Kambale @ Kamat,
R/o Gyangabawadi, Vijayapura.
(In L.A.C. No.525/2018).

List of Witnesses examined on behalf of Respondents:

-Nil-

List of Documents marked on behalf of Claimants:

- Ex.P-1 to Ex.P-11 : Reference Applications filed before respondents.
- Ex.P-12 & Ex.P-13 : C.C. of Order passed by Respondent No.1.
- Ex.P-14 : C.C. of Notification dated 28.6.1976.
- Ex.P-15 : C.C. of Vijayapura City Map.
- Ex.P-16 : C.C. of Notification dated 2.4.2001.
- Ex.P-17 : C.C. of Map.
- Ex.P-17(a) : Acquired Area shown in Yellow Colour in Ex.P-17.
- Ex.P-18 : Attested Copy of Gazette Notification dated 20-12-2013.
- Ex.P-19 : Vijayapura Taluka Map.
- Ex.P-20 : Letter along with Approved Layout List of Mahalbagayat Village issued by Commissioner, VDA, Vijayapura.
- Ex.P-21 : Letter of Assistant Controller, Rights and Measure Department, Vijayapura.
- Ex.P-22 : C.C. of Order passed in Writ Petition No.201027/2015.
- Ex.P-23 to Ex.P-27 : Details of Auctioned Plots.
- Ex.P-28 to Ex.P-59 : C.C. of Sale Deeds.
- Ex.P-60 : C.C. of Judgment in Civil Appeal No.1645-1648 of 2016.

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- Ex.P-61 : C.C. of Order passed by the Court of the Arbitrator National Highway Authority of India, Deputy Commissioner, Vijayapura.
- Ex.P-62 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-63 & Ex.P-64 : C.C. of Compensation Payment Registers of Tidagundi Village.
- Ex.P-65 & Ex.P-66 : C.C. of Memorandums issued by D.C., Vijayapura.
- Ex.P-67 : C.C. of Award No.NH 13/CALA/BJP/CR-14/2011-12 dated 11-10-2013.
- Ex.P-68 : C.C. of Sale Deed.
- Ex.P-69 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-70 : C.C. of Indemnity Bond.
- Ex.P-71 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-72 : C.C. of Memorandum issued by D.C. Vijayapura.
- Ex.P-73 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-74 : C.C. of Indemnity Bond.
- Ex.P-75 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-76 : C.C. of Vouchers for Payment of Compensation.
- Ex.P-77 : C.C. of Indemnity Bond.
- Ex.P-78 : C.C. of Compensation Payment Register of Tidagundi Village.
- Ex.P-79 : C.C. of Memorandum issued by D.C., Vijayapura.
- Ex.P-80 : C.C. of Excess & Additional Area Award No.NH 13/CALA/BJP/CR-14/2012-13 dated 31-5-2016.

- Ex.P-81 : C.C. of Vouchers for Payment of Compensation.
Ex.P-82 : C.C. of Indemnity Bond.
Ex.P-83 : C.C. of Compensation Payment Register of Tidagundi Village.
Ex.P-84 : C.C. of Office Order passed by the Assistant Commissioner, Vijayapura & Competent Authority for Land Acquisition, NH.13 (Solapur Section).
Ex.P-85 : C.C. of Toll Plaza Area Original Award No.NH 13/CALA/BJP/CR-14/2015-16 dated 31-7-2016.
Ex.P-86 : Valuation Report.

(The above said exhibits were marked in L.A.C. No.525/2018).

List of Documents marked on behalf of Respondents:

- Ex.R-1 to Ex.R-11: Copies of Award No.LAQ:SR:29/ 2014-15 dated 15-02-2018.

(The above said exhibits were marked in L.A.C. No.525/2018).

(Raghavendra Gowda B.G.)
I Additional District Judge &
The Land Acquisition,
Rehabilitation and
Resettlement Authority,
Vijayapura.

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ANNEXURE C-1

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Status: Pending

Case Number: WP 203801/2024
(KAHC030124742024)

Classification: LA RES

Date of Filing: 17/12/2024
11:53:23

Petitioner: KRISHNA BHAGYA
JALA NIGAM LIMITED

Petitioner Advocate: GOURISH
S KHASHAMPUR

Respondent: THE ADDL.
SPECIAL LAND ACQUISITION
OFFICER AND ORS

Respondent Advocate:

Filing No.: WP 203779/2024

Judge: R.NATARAJ

Last Posted For: ORDERS

Last Date of Action: 16/01/2025

Last Action Taken:
ADJOURNED

Next Hearing Date:

Daily Orders: WP 203801/2024

1 R.NATARAJ 16/01/2025

Learned counsel for the petitioner submits that needful is done.
Office to verify and proceed further.

Last Updated On: 2025-01-16 14:48:31

2 S.R.KRISHNA KUMAR 18/12/2024

Counsel's submission on office objection No.24 is accepted.
Learned High Court Government Pleader accepts notice for respondent Nos. 1 to 3.
Issue emergent notice to respondent No.4, returnable by 16.01.2025.
Meanwhile, operation, implementation and execution of the impugned judgment and award at Annexure -
A dated 10.04.2019 passed by the I Additional District Judge and the Land Acquisition, Rehabilitation and
Resettlement Authority, Vijayapura, in LAC No.510/2018 are stayed till the next date of hearing.

Last Updated On: 2024-12-18 18:35:18

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This document is referred to as
Annexure C-1 in the Affidavit of
Smt./Sri. D. V. S. Kumar P.

NOTARY PUBLIC

True COPY
P.

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ಕರ್ನಾಟಕ ಹೈಕೋರ್ಟ್, ನ್ಯಾಯಾಲಯ HIGH COURT OF KARNATAKA



ಕರ್ನಾಟಕ ಹೈಕೋರ್ಟ್, ನ್ಯಾಯಾಲಯ

HIGH COURT OF KARNATAKA

ANNEXURE-C-2



Search

> Case Status > Case Status

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Status: Pending

Case Number: WP
203783/2024
(KAHC030124762024)

Classification: LA RES

Date of Filing: 17/12/2024
10:06:05

Petitioner: KRISHNA
BHAGYA JALA NIGAM
LIMITED

Petitioner Advocate:
GOURISH S KHASHAMPUR

Respondent: THE ADDL.
SPECIAL LAND AND ORS

Respondent Advocate:

Filing No.: WP 203781/2024

Judge: M.I.ARUN

Last Posted For: ORDERS

Last Date of Action:
02/06/2025

Last Action Taken:
ADJOURNED

Next Hearing Date:

Daily Orders: WP 203783/2024

1	M.I.ARUN	02/06/2025
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One week time is granted to do the needful.

2	R.NATARAJ	16/01/2025
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Learned counsel for the petitioner submits that needful is done.
Office to verify and proceed further.

Last Updated On: 2025-01-16 14:48:12

3	S.R.KRISHNA KUMAR	18/12/2024
---	-------------------	------------

Counsel's submission on office objection No.24 is accepted.
Learned High Court Government Pleader accepts notice for respondent Nos.1 to 3.
Issue emergent notice to respondent No.4, returnable by 16.01.2025.
Meanwhile, operation, implementation and execution of the impugned judgment and award at Annexure - A dated 26.03.2019 passed by the I Additional District Judge and the Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura, in LAC No.485/2018 are stayed till the next date of hearing.

Last Updated On: 2024-12-18 18:40:28

This document is referred to as
Annexure C-2 in the Affidavit of
Smt./Sri... Ravi Kumar P.

NOTARY PUBLIC

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IN THE HIGH COURT OF KARNATAKA AT KALABURGI

WRIT PETITION No. /2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd. ...Petitioner

AND:

The Special Land Acquisition Officer and Ors. ...Respondents

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Kalaburgi

09/06/2025

Adv. For Petitioner

(P. G. Yatnal)

10. Rajashree W/o Dundappa @Dondappa Gadekar,
Age: 61 years, Occ; Agriculture,
11. Gurubai W/o Basappa @ Basavaraj
Doddamani @ Doddamani
Age: 66 years, Occ: Household Work.
12. Sangappa S/o Basappa Doddamani @ Doddamani
Age: 37 years, Occ: Agriculture
13. Roopa W/o Laxman Totakar
Age : 35 Years, Occ: Household Work
14. Ningappa S/o Basappa Doddamani @ Doddamani,
Age: 33 years Occ: Agriculture
15. Nagamma W/o Yamanappa Doddamani @ Doddamani
Age: 71 Years, Occ: Agriculture/Household Work.
16. Subhash S/o Yamanappa Doddamani @ Doddamani
Age: 58 Years, Occ: Agriculture
17. Ramesh S/o Yamanappa Doddamani @ Doddamani
Age : 56 Years, Occ: Agriculture
18. Shrishail S/o Yamanappa Doddamani @ Doddamani,
Age: 52 years Occ: Agriculture
19. Surekha D/o Yamanappa Doddamani, @ Doddamani,
Age: 49 years, Occ: Household work.
20. Prakash S/o Yamanappa Doddamani, @ Doddamani
Age: 48 years Occ: Agriculture
21. Umesh S/o Yamanappa Doddamani, @ Doddamani
Age: 46 years, Occ: Agriculture
22. Shrishail S/o Yamanappa Doddamani @ Doddamani,
Age: 39 years Occ: Agriculture
23. Gangadhar S/o Vidyahar Heralagi @ Doddamani,
Age: 47 years Occ: Agriculture

24. Poornima @ Girijavva W/o Rajashekhar, Heralagi

Age: 46 years Occ: Agriculture/House hold work.

25. Prerana D/o Rajashekhar Heralagi,

Age: 22 years, Occ: Student

26. Naveen S/o Rajashekhar, Heralagi

Age: 21 years, Occ: Student

Respondent No. 02 to 26 are

R/o Basava Nager , Bagalkot Road Vijayapur.-586102

27. Babu S/o Shivamma Yamme @ Shiranagar

and S/o Shekhappa Shiranagar

Age: 55 years Occ: Agriculture

28. Shiddappa S/o Gurusiddappa Pujari

Age: 81. years Occ: Agriculture,

Respondents No. 27 and 28

R/o Ward No.29 Basava Nager,

Bagalkot Road Vijayapur-586102

29. Baburav @ babu S/o Shivagondappa @ Shivappa Pujari

Age: 54 years Occ: Agriculture

30. Apparay @ Appu S/o Shivagondappa @ Shivappa Pujari

Age: 51 years Occ: Agriculture,

31. Annappa S/o Shivagondappa @ Shivappa Pujari

Age: 50 years Occ: Agriculture,

32. Yashavanth S/o Shivagondappa @ Shivappa Pujari

Age: 46 years Occ: Agriculture,

Respondents No. 29 and 32 are

R/o Kasageri Glli, Dist: Vijayapur-586101

...Respondents

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**APPLICATION UNDER RULE 11 OF THE WRIT PROCEEDINGS
RULES, 1977 R/W Sec. 151 OF CPC.**

For the reasons stated in the accompanying affidavit, this Hon'ble court may be pleased to dispense with production of certified copy of impugned judgment and orders in:

- a) LAC No.492/2018 dated 26/03/2019 produced as Annexure-B,
- b) LAC No.493/2018 dated 26/03/2019 produced as Annexure-B-1,
- c) LAC No.494/2018 dated 26/03/2019 produced as Annexure-B-2,
- d) LAC No.495/2018 dated 26/03/2019 produced as Annexure-B-3,
- e) LAC No.497/2018 dated 26/03/2019 produced as Annexure-B-4,
- f) LAC No.496/2018 dated 26/03/2019 produced as Annexure-B-5,
- g) LAC No.525/2018 dated 10/04/2019 produced as Annexure-B-6 and
- h) LAC No.526/2018 dated 10/04/2019 produced as Annexure-B-7, in the interest of justice.

Kalaburgi

09/06/2025

Adv. For Petitioner

(P. G. Yatnal)

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IN THE HIGH COURT OF KARNATAKA AT KALABURAGI
WRIT PETITION No. /2025

BETWEEN:

Krishna BhagyaJalaNigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and Ors. ...Respondents

MEMORANDUM OF FACTS

I, Sri. Parasappa S/o GurappaYatnal, aged about 37 years, Occ- advocate, R/at No. 200/A, 55th Cross, 10th Main, (Opp-Rammandir), Rajajinagar, Bengaluru-10, to Bengaluru do hereby solemnly affirm and state on oath as follows:

1. I am the advocate for petitioner in the above case. I am conversant with the facts and circumstances of the petition. Hence I am swearing to this memorandum of facts.
2. I state impugned judgment and order vide Annexure-7 is assailed before this Hon'ble court. The petitioner has also applied for a certified copy before the authorities, however, the authorities have not issued the said copy till today. Therefore, it is not produced. I undertake to produce it immediately after receiving from the authorities. Hence this affidavit.

The contents of the above affidavit are explained to me in my vernacular language and I believe them to be true and correct.

Kalaburgi

Dated: - /06/2025

Identified by me:

DEPONENT